GUYANA SUPPLEMENTAL FIELD OFFICE MANUAL FOR PERSONNEL AND OPERATIONS

PARTNERS of the AMERICAS
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1. Introduction

1.1 Welcome to Partners

Welcome to Partners of the Americas!

The field office manual has been prepared specifically for Partners of the Americas employees in Guyana. It will introduce the organization and information on the rights and obligations the employee has towards the Guyana Field Office and, at the same time, about the rights and obligations that he Guyana Field Office has towards the employee. This Manual is therefore a basic information tool for employees working in the Guyana Field Office.

In this book we try to explain the important topics related to financial, personnel and operational management. The Guyana Field Office expects that all employees understand and implement all the policies and procedures found within this manual. It is the responsibility of each employee to know the policies and procedures, or when necessary, request clarification. All employees will be required to sign a certification form confirming that they have reviewed all the policies and that they will adhered to the standards set forth within this document.

When the Guyana Field Office deems it appropriate to modify the policies and procedures, it will update the necessary parameters which will subsequently be disbursed to each employee in a timely manner. We ask you to contact your immediate superior or the Administrative and Financial Management if you have any doubt about your position or your working relationship with the Partners Guyana, as many times as necessary.

You are the lifeblood of Partners of the Americas and, as such, we want you to find an interesting and rewarding experience in your work environment.

With all due respect, I wish you every success.

John McPhail, President & CEO

1.2 Objective and Scope

The purpose of this manual is to help its users to work in accordance with the rules and philosophy of Partners of the Americas, adapted to the Labor Code in Guyana, thus becoming a consultation tool with unified criteria and provide a general framework and standardized set of policies and procedures for financial, personnel and operational management in Partners of the Americas' Guyana Field Office, herein after referred to as **"Partners Guyana"**. The supplemental manual addresses country specific laws, regulations and policies in accordance with Guyana law.

The information presented here contains the main standards of conduct Partners Guyana and the most common legal regulations in the workplace.

Partners Guyana is expected to comply with all the policies and procedures set forth in this manual and are encouraged to seek clarifications if questions arise. Partners Guyana, (including sub-offices), must maintain a printed copy of the manual for reference.

1.3 Management Control – Roles and Responsibilities in Headquarters

The Chief Financial Officer (CFO) is the authority on the Partners Guyana supplemental manual, or in absence of the CFO, an individual designated by the President and CEO. Partners Guyana is encouraged to provide input, suggestions and corrections, but may not alter or change any part of this manual.

This manual will be reviewed and updated annually (if applicable) to reflect current circumstances as well as new policies and procedures. Partners Guyana will be notified of updates by e-mail.

1.4 Implementation Control – Roles and Responsibilities in Guyana

This manual is for the use and knowledge of all employees without exception. The contents of this manual as well as its updates will be notified to each employee for its understanding and its application. It is the responsibility of all employees to know, understand and apply the contents of this manual in its entirety.

It is not permitted to reproduce the manual for reasons as its consultation is exclusively reserved for the employees of Partners Guyana. In the event that the employee has suggestions and recommendations related to the manual, these remarks must be communicated in writing to the immediate supervisor so that they can forward it to the management.

Enforcement of this supplemental field office manual will be the responsibility of the positions below.

- Field Office (FO) Director (Project Director, Chief of Party, etc.) – This individual is the lead field office operations director in country. They are responsible for overall project/program management and the operations of the field on a day to day basis. This individual is also responsible for approval of all the finance operations including payment authorizations and internal controls for the in-country field office.
- Field Office (FO) Finance Manager (Admin & Finance Assistant/Manager) – This individual is the person responsible for finance operations, basic data entry, payment processing and entry, and reconciling accounts.

2. Internal Controls

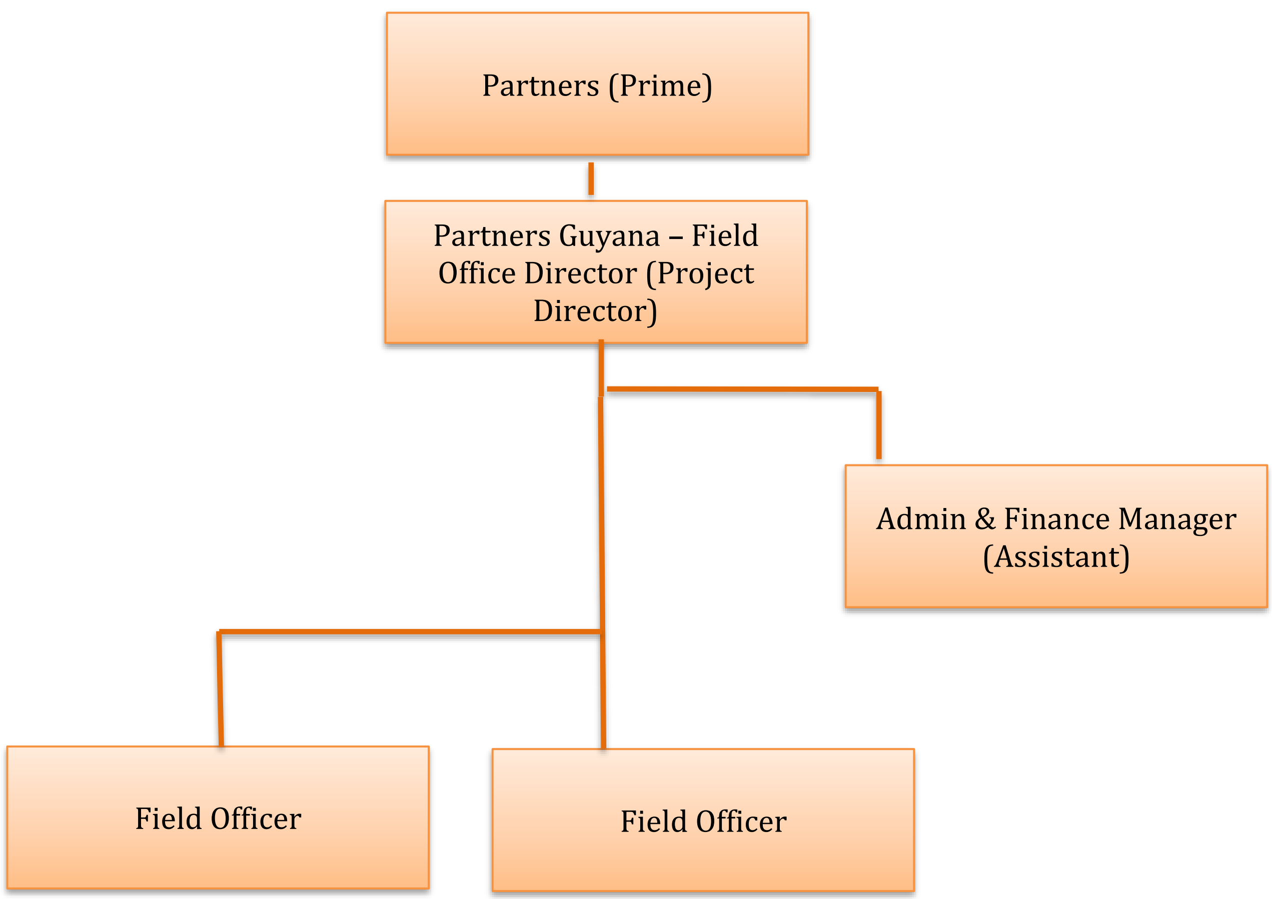
2.1 Purpose and Scope

The purpose of Internal Controls is to provide reasonable assurance that the following objectives are being accomplished:

- Reliability and integrity of information
- Compliance with policies, plans, procedures, laws and regulations
- Safeguarding of assets in Partners Guyana
- Economical and efficient use of resources
- Accomplishment of established objectives and goals for operations and programs

2.2 Approval Authority

The flowchart below outlines the approval authority matrix at Partners Guyana. The FO Finance Manager, supported by the FO Director, has responsibility for enforcing approval authority. Partners HQ has approval over the FO Director and must approve his/her payments, etc. In accordance with the procurement policy, all transactions valued at USD $2,500 will automatically need to be approved by Partners HQ.



2.2.1 Responsibilities of Approval and Review Authorities

It's critical that approval authority holders not only understand what their authority levels are, but also what their responsibilities are in using their authority. The responsibilities for both approval authority holders and financial review are outlined below.

By approving an expenditure, commitment or payment, the signer is confirming that:

1. The expenditure is necessary and appropriate;
2. The item is not currently in stock or available;
3. The technical specifications are correct and adequately detailed;
4. The required forms are complete;
5. Funds are available within the budget;
6. The expenditure is in compliance with Partners HQ's policies and procedures.

Financial review is a compliance check and not an approval authority. The primary purpose of financial review is to ensure that all financial and compliance aspects of the commitment are considered. The FO Finance Manager, when signing off, is confirming that:

1. The expense has been authorized by the appropriate authorizer;
2. The expenditure is within budget guidelines;
3. The expenditure is in compliance with Partners HQ and donor policies;
4. The expense has been coded correctly;
5. The calculations are correct;
6. The required supporting documentation is in order and adequately explains the transaction; and
7. All payments, whether by check, wire transfer, etc. are being paid to the party which appears on the procurement records and/or other approval documentation. Checks or transfers may not be made out to third parties or any Partners' employees (either Partners HQ or Partners Guyana) to be cashed on behalf of the vendor. Any exceptions must be approved in writing by the Chief Financial Officer (CFO) or President & CEO.
8. All expenses are recorded at full cost and not net of taxes, etc.

An original signature on an original document is the required method of documenting an approval or review. Upward approval is required for all transactions. Under no circumstances may an originator approve their own expenses, including the FO Director.

When the authority holder is not located at Partners Guyana or where an approval is required due to a temporary absence (on travel, vacation, sick, etc.), the next level of authority in that office should be sought for approvals that the absent party would have normally made.

When the authority holder is permanently located outside of the office where an approval is required or is the only one authorized for a particular approval and they are out of office, the document to be signed should be printed, signed and scanned. The scanned copy should be sent back to the office requiring the approval. The scanned document must then be printed and attached.

3. Monthly Reconciliation of Accounts

3.1 Reconciliation of Assets, Liabilities & Cash Accounts

All assets and liabilities accounts (i.e. cash, accounts receivable, accounts payable and other balance sheet accounts) must be properly reconciled on a monthly basis. Evidence of the reconciliation should be maintained in Partners Guyana and be sent monthly to Partners HQ. This evidence should include all supporting schedules prepared by the FO Finance Manager and approved by the FO Director prior to the submission of the reports to Partners HQ, or presentation to the auditors during the audit process.

All financial reports for both Partners Guyana and all sub-awardees must be submitted to Partners HQ by the 7th of the following month. If the 7th of the month falls on a holiday or weekend, the submission deadline is the last business day prior to the 7th. Compliance with this timeline is critical to ensure expenditures are recorded in the correct month. If there are any delays or issues with meeting the deadline, field staff must immediately notify Partners HQ of the delay and provide an explanation for the nature of the delay. Partners will provide a template for monthly financial reporting. A financial report must be received each month for all bank accounts held by Partners Guyana which includes all the following:

A) Signed bank reconciliation (template provided by Partners HQ, see Annex C)

B) Copy of the bank statement(s)

C) Expense report indicating all expenditures in the month (on the template provided by Partners, see Annex C)

D) Copies of all documentation to support the expenditures listed on the expense report

E) If reporting is done in local currency, then a copy of the monthly average exchange rates must be submitted.

Partners may withhold a cash flow advance request if Partners Guyana fails to provide timely reporting of expenditures in accordance with the above guidelines.

3.2 System of Award Management (SAM) Check Via Visual Compliance

Partners HQ, in accordance with Federal regulation, requires that Partners Guyana run a Visual Compliance check on all recipients (individuals and entities) who are receiving any funds. The website for Visual Compliance is: https://www.visualcompliance.com/ and the necessary login information will be provided by Partner HQ. Proof that the Visual Compliance check was done must be retained and kept along with proof of the payment, **prior to the recipient receiving any funds**. The Visual Compliance check must be run at a minimum, once per calendar year (January – December) on the first payment of the year in order to be compliant.

Each month, Partners HQ will request copies of selected Visual Compliance checks for inspection and to ensure compliance. The transactions will be selected at random.

4. Financial Records, Audits & Record Retention

4.1 Record Retention and Accounting

Partners Guyana must maintain financial records, supporting documents, statistical records and all other records, to support performance of, and charges to, the project. Such records must comply with accounting principles generally accepted in the U.S and Guyana.

Partners Guyana records and any subrecipient records that pertain to the project must be retained in country for six years from the date on which payments/records are made. After the necessary record retention in country, Partners Guyana will need to work with Partners HQ to transport the necessary documents to the international office.

4.2 Filing & Records

The FO Director is responsible for establishing guidelines and procedures for filing and tracking. In addition, they are responsible for maintaining the general filing system or appointing another member of the management team to assist in this process. At a minimum all financial records, supporting documents, statistical records and all other records, to support performance of, and charges to, the project must be stored in a fire-proof filing cabinet with a lock. Access to the files should be restricted to the FO Director and FO Finance Manager.

4.3 Audits

Partners Guyana must have an annual audit conducted in accordance with the "Guidelines for Financial Audits Contracted by Foreign Recipients" https://www.usaid.gov/sites/default/files/documents/1868/591maa_new.pdf, for any fiscal year (January – December) in which Partners Guyana expends a combined total of USD $750,000 or more in all Federal awards. Any donor can make a request and has the right to conduct an audit any time during the life of a project/program that the donor funds. Any annual audit must be conducted in coordination with Partners HQ. The terms of reference and the selection of the audit firm must be approved by the CFO at Partners HQ.

Partners HQ retains the right to conduct a financial review, require an audit, or otherwise ensure adequate accountability of organizations expending federal funds, regardless of the audit requirements above.

4.4 Financial Reporting

The FO Finance Manager will provide the FO Director with the below reports monthly:

1. Balance Sheet

2. Income Statement
3. Report on Budget versus Actuals

The FO Director is responsible for the review and approval of the above financial statements. Copies of the approved financial statements must be submitted to Partners HQ quarterly.

5. Inventory Control

5.1 Equipment vs. Supplies

- **Equipment** means tangible personal property (including information technology systems) having a useful life of more than one year and a per-unit acquisition cost which equals or exceeds USD $5,000.
- **Supplies** means all tangible personal property other than those described in equipment (above). A computing device (e.g. computers, etc.) is a supply if the acquisition cost is less than USD $5,000, regardless of the length of its useful life.

5.2 Inventory Control Requirements

A physical inventory of Partners Guyana must be taken, and the results reconciled with Partners Guyana's records at least once every year in January. The monetary value threshold for accounting for inventory items (furniture, equipment and fixtures) in Guyana is $500 USD per item.

The document "Master Equipment & Supply Listing", found in Annex A must be submitted to Partners HQ annually no later than January 31st. The FO Finance Manager must certify and reconcile to the books the "Master Equipment & Supply Listing" and the FO Director must review and approve.

5.3 Use of Equipment

Partners Guyana strives to ensure that its employees have modern and adequate equipment to make their work easier and more efficient.

Responsibilities for the proper use of equipment:

- Handle the assigned equipment with care;
- Monitor the optimal operation of assigned equipment;
- If for any reason equipment from another source is to be used, the employee must ensure that it contains no viruses in order to preserve information on the organization's computer network;
- Report any fault or loss of equipment immediately; and
- Facilitate equipment access to technical and maintenance services.

Partners Guyana does not authorize the following activities:

- Installation of programs that do not have their corresponding license;
- Use of copied programs that are not for the exclusive use of Partners Guyana;
- Installation and use of games, movies, etc.;
- Use of programs that may affect the operation of Partners Guyana network;
- Introduction of elements that damage the equipment;
- Block operating systems without notice;
- Create passwords without sharing them with the systems manager and the Administration Manager, preventing access to working documents;
- Delete, without warning the information necessary for the execution of programs;
- Any conduct with bad faith or destructive intent that interferes with the good work of other employees.

Use of Printing and Copying Equipment

The use of printers and photocopying machines is exclusively reserved for work related to Partners Guyana projects.

Use of the Internet and Chat Software

Use of the internet should be for work purposes only. Software programs for chatting within the organization such as Skype, WhatsApp, etc. is permitted for office use.

It is strictly forbidden to use chat software such as Facebook, Instagram, or other social media sites, unless for explicit Partners Guyana work. Access to adult and similar web sites is strictly prohibited. Note that Partners Guyana reserves the right to monitor all company equipment, emails, etc. to ensure its proper use.

Use of Audio Equipment

The use of radio, tape recorder or CDs is not prohibited. However, employees must refrain from doing so in places where their use may interfere with the normal development of their employees' work. In any case, the volume of the music must be of low intensity.

6. Cash Management

6.1 Petty Cash

This is an imprest system of cash control which is used for day-to-day expenditure of items less than USD $50.00 or its Guyanese dollar equivocal. The fixed float amount of petty cash is USD $250.00 or its Guyanese dollar equivocal. Unless otherwise delegated, the FO Finance Manager is responsible for the petty cash system, including disbursement and reconciliation.

A petty cash log is to be maintained by the FO Finance Manager. The date and amount of petty cash taken must be recorded on the petty cash log. The FO Finance Manager will complete the details of the expenditure and track all receipts associated with petty cash. At the end of each month, a petty cash count should be completed to confirm the balance; a template is provided in Annex B.

When the balance of the petty cash reaches USD $50.00, the FO Finance Manager will reconcile the petty cash, ensuring that all receipts and vouchers are accounted for, and replace funds by drawing a check made out to petty cash. When petty cash is reimbursed by check, the transaction is recorded in the accounting software allocating each item to the appropriate line item. The FO Director is responsible for review and approval of the petty cash reconciliation. The FO Director is also responsible for surprise cash count to be done no less than quarterly and at the end of fiscal year closure.

6.2 Exchange Rates

To report all revenues and expenditures, Partners Guyana uses a monthly average exchange rate. Proof of exchange rate must be submitted monthly to Partners HQ with the monthly field expenditure reports.

6.3 Bank Accounts

Partners Guyana is authorized to set up one bank account to receive project funds dominated in Guyanese dollar. If any additional bank accounts are required, the FO Director must request permission and approval in writing form to the CFO. The goal is to keep Partners Guyana's bank accounts to the minimum number needed.

The bank accounts should only be used for the purpose of the project and in the name of Partners Guyana. Transactions related to other projects will not be permitted. The bank account should have a minimum of a HQ staff member and two signatories, the FO Finance Manager and the FO Director. The FO Director will approve all the payments and sign all checks. For payments and checks exceeding USD $750.00, the FO Finance Manager must sign as a second signatory.

Information on any new bank account must be sent to Partners HQ and provide the following information: the name on the account, account number, bank name, type of account, list of signatories on the account and current balance. Changes to the signatories on the account must be approved by the FO Director and notification should be provided to Partners HQ. Upon hiring or termination of employee with signatory power, the bank account signatories must be updated accordingly.

6.3.1 Monthly Bank Account Reconciliations

The monthly bank statement will be used to reconcile the account each month. Each bank account should have a separate general ledger account, differentiated by sub-code.

At the end of each month Partners Guyana will receive a monthly bank statement from the bank. Note an official statement must be obtained from the bank for each account, regardless of whether any transactions took place during the month. If the reconciliation is done in Guyanese dollar, then a proof of exchange rate to USD must be provided.

The purpose of the monthly bank reconciliation is to reconcile the balance shown on the bank statement with the ending balance on the general ledger journal. Each transaction (check, wire, advance, etc.) must be recorded separately. A lump sum total will not be permissible. All bank reconciliations must be done on the field report expenditure template and reconciliation, found in Annex C.

The reconciliation tab should not be used to restate the monthly bank activity but should be used to show any outstanding transactions that occurred during the month but have not yet been reflected on the bank statement. The prior month's bank reconciliation must be checked for any items that remain outstanding. Transactions that remain uncleared from previous months should be promptly researched with the bank or the payee. The tab for financial field report of general ledger activities should show all financial transaction occurring in the month.

Once the full bank reconciliation is completed, the FO Finance Manager will be responsible for submitting to Partners HQ the following: bank reconciliation, copy of the bank statement, full financial field report (general ledger report), and copies of all receipts by the 7th of each month for the prior month's expenditures as indicated in 3.1 Reconciliation of Assets, Liabilities & Cash Accounts.

6.4 Cash Flow Advances

Partners Guyana may request up to 30 days of cash needs based on the monthly cash flow projection. Cash may be drawn once a month on the first of the month. A cash flow request must be used for all cash requests to Partners HQ, the template is provided in Annex D. Funding requests should be sent to Partners HQ by the 7th of the month to be processed on mid-month wire and check release cycle. Partners Guyana should plan enough lead time when requesting cash to take into account the wire processing time by the bank and Partners

HQ. Cash flow advances must be cleared monthly through submission of a financial report that is submitted to Partners HQ in accordance with 3.1 Reconciliation of Assets, Liabilities & Cash Accounts. Often the cash flow advances will not clear entirely each month, and therefore any leftover funds should be taken into consideration as cash on hand when determining the next month's cash flow request. If financial reports are not submitted on time, additional advances to Partners Guyana may be held at the discretion of the CFO.

6.4.1 Excess Cash on Hand

Excess funds are defined as cash in excess of 60 days for Guyana operations. As having an excess of funds in the Guyana can pose a risk, Partners Guyana should consult with Partners HQ to determine the best course of action to rectify the situation.

6.5 General Cash Handling Policies

Below are the general guidelines that Partners Guyana is required to meet in order to ensure compliance and safeguarding of cash.

6.5.1 Use of Safes

Partners Guyana is required to use a fireproof safe for the storage of office cash. Access to the safe should be strictly controlled. A set of keys should be kept by the FO Director only.

6.5.2 Minimizing Cash Transactions

Given the inherent risks associated with cash handling, Partners Guyana must always use other means of payment whenever possible, such as a bank debit card, checks or wire transfers and avoid use of petty cash and advances. The maximum cash payment that is permissible is USD $250. Transactions over this threshold must be made with another payment method such as a bank debit card, check or wire transfer.

6.5.3 Evidence of Receipt by Payee

To prevent duplicate payments or claims of discrepancies, all cash payments must be documented by evidence of receipt by the payee. This means that the recipient of the payment must sign that the cash was received in total at the time of payment. A numbered receipt should be prepared in duplicate indicating the amount and date and should be signed by the recipient. One copy should be given to the payee and one copy should be retained and included with the voucher documentation.

6.5.4 Periodic Cash Counts – Petty Cash Certification

Cash balances should be physically counted periodically to ensure that cash journal/receipts balances match the actual cash on hand. These cash counts should be done in accordance with Section 6.1 Petty Cash. Petty cash certifications should conform to the following general guidelines:

- Cash counts should be done discreetly, out of general view and should be undisturbed.
- Counts should be performed by a minimum of two people. One should serve as the counter and the other as a witness of the count. A template of the Petty Cash Certification can be found in Annex E which must be completed each time.
- Cash counts should be performed each month and at random. Note that Partners HQ reserves the right to request a Petty Cash Certification at any time.
- Any overages or underages must be recorded in the cash journal at month end in order to reconcile with the final count. Discrepancies may not be held over to future periods. The cause for any overages or underages must be further researched and appropriate action taken to ensure that it does not happen in the future. Partners HQ must be notified of any discrepancies.

7. Partners Guyana General Policies

7.1 Anti-Corruption Policy

Partners Guyana and its affiliates must have a zero-tolerance against bribery and corruption. The objective of the anti-corruption policy is to ensure that appropriate anti-corruption and bribery procedures are in place to avoid any violations of relevant laws and regulations. This policy applies to all officers, directors, shareholders, employees and appointed third party representatives. For a copy of the full policy, please reference the Partners General Field Office Manual.

7.2 Anti-Discrimination

Article 149 of the Guyana Constitution provides general protections from discriminations on the ground of race, place of origin, political opinion, color, creed, age, disability, marital status, sex, gender, language, birth, social class, pregnancy, religion, conscience, belief or culture. This is promulgated in the Prevention of Discrimination Act Cap 99:08 (the "PDA"). Under Section 4(1) of the PDA makes its unlawful for any person to discriminates against another person (whether if directly or indirectly) if the first mentioned person makes, on any of the grounds mentioned below, any distinction, exclusion or preference the intent or effect of which is to nullify or impair equality of opportunity or treatment in any employment or occupation. Grounds for discrimination include race, sex, religion , color, ethnic origin, indigenous population, national extraction, social origin, economic status, political opinion, disability, family responsibilities, pregnancy, marital status or age except for purposes of retirement and restrictions on work and employment of minors. The Guyana Constitution Article 149(D) also provides that all workers are equal before the law and benefit from the same protection and guarantees.

Partners Guyana promotes diversity and equal opportunity in the workplace in accordance with all applicable local laws. If you believe that you have been the victim of any type of discrimination or are aware of such conduct, you must promptly notify your supervisor, FO Director or Partners HQ. An employee who has made a report of questionable conduct and who subsequently believes he or she has been subjected to retaliation of any kind by any Partners Guyana or Partners HQ employee is directed to immediately report it to the FO Director or the appropriate party at Partners HQ. Anyone found to be engaging in any type of unlawful discrimination will be subject to disciplinary action, up to and including termination of employment.

All Partners Guyana employees have the responsibility to maintain honesty, integrity and efficiency, and to reassure their conduct and commitment to the highest ethical standards. It is important to emphasize that all employees are important. The development and success of Partners Guyana depends on the interest and creativity of its employees in the work. They must maintain good relationships and treat others kindly, creating a harmonious work environment and excellent employee relationships including equality of opportunity without discrimination or harassment.

7.3 Anti-Sexual Harassment

The Partners Guyana prohibits all forms of sexual harassment. Sexual harassment refers to any physical behavior, verbal or not, of sexual nature, affecting women and men's dignity, and deemed inappropriate, unreasonable and offensive for the worker.

The evidence of sexual harassment in the workplace is established if the workers perceive that their reaction to such behavior:

1. Is a condition to keep the job and/or;
2. Will have an impact on decisions concerning their job and/or;
3. Will have an impact on their performance.

Sexual harassment can also come from a behavior that creates a hostile, threatening and humiliating environment. Partners Guyana is committed to providing a work environment free of any form of verbal or physical discrimination and abuse based on race, color, sex, religion, ethnic origin, indigenous populations, national extraction, political opinion, disability, sexual orientation, economic status, family responsibilities, pregnancy, marital status, age (except to confirm not employing a minor), national ancestry or social origin, or for any other purpose. It is Partners Guyana policy to prohibit harassment between employees. The purpose of this philosophy is not to regulate the moral behavior of employees, but rather to ensure professional behavior at work. Employee harassment refers to the use of epithets, nicknames, threats, derogatory comments, offensive jokes, sexual insinuations, requests for sexual favors, and any other type of verbal or similar physical contact. Any employee who considers that he is subject to discrimination and harassment will have to report this situation to his/her immediate supervisor, FO Director or Partners HQ so that the corresponding investigation can be carried out and that the measures that the case deserves to be taken.

7.4 Anti-Workplace Violence and Bullying

To protect the welfare of our staff from instances of violence in the workplace, Partners Guyana has implemented a violence prevention policy. Partners Guyana strongly believes that all employees should be treated with dignity and respect and that each employee is responsible for her or his actions and consequences. Thus, acts of violence and threats of violence will not be tolerated. The carrying of weapons including, but not limited to, firearms and knives on company or client premises is strictly prohibited. Additionally, Partners Guyana does not allow workplace bullying. Partners Guyana defines bullying as "repeated inappropriate behavior, either direct or indirect, whether verbal, physical or otherwise, conducted by one or more persons against another or others, at the place of work and/or in the course of employment." Such behavior violates the company Code of Ethics, which clearly states that all employees will be treated with dignity and respect. Bullying may be intentional or unintentional. However, it must be noted that where an allegation of bullying is made, the intention of the alleged bully is irrelevant and will not be given consideration when meting out discipline. As in sexual harassment, it is the effect of the behavior upon the individual that is important. Partners Guyana considers the following types of behavior examples of bullying:

- Verbal bullying: Slandering, ridiculing or maligning a person or his/her family; persistent name calling that is hurtful, insulting or humiliating; using a person as the butt of jokes; abusive and offensive remarks.
- Physical bullying: Pushing, shoving, kicking, poking, tripping, assault or threat of physical assault; damage to a person's work area or property.
- Gesture bullying: Nonverbal threatening gestures or glances that convey threatening messages.
- Exclusion: Socially or physically excluding or disregarding a person in work-related activities.

Any violation of this policy may lead to disciplinary action, up to, and including termination. Additionally, employees have a "duty to warn" their supervisors, FO Director or Partners HQ of any suspicious workplace activity, situations or incidents that appear problematic. This includes, but is not limited to, threats or acts of violence, aggressive behavior, and threatening comments or remarks. While Partners Guyana cannot guarantee the safety of employees, all reports will be promptly and thoroughly investigated.

7.4.1 Harassment/Bullying Complaint Procedure

If you believe you have been subjected to prohibited harassment or you are aware of any such conduct, the incident must be reported immediately. We ask that any person who has witnessed or been the subject of harassment contact our independent Human Resource (HR) Consultant, Foster Thomas. A confidential hotline at +1 (202) 247-9610 has been set up for you to report your concern via voicemail message. The voicemail is monitored by an HR Consultant from Foster Thomas who will review all messages and promptly contact you to discuss your concern and to gain a full understanding of the situation. The HR Consultant will then provide an overview of the situation to the Ethics Committee of the Board. The Ethics Committee will then review the case and make a determination of whether the case should be referred to the President (or, in appropriate circumstances, to another member of Senior Management or the FO Director) for further action. If the complainant provides no identifying information in the message, Foster Thomas will relay the complaint directly to the Ethics Committee for review.

Alternatively, or in addition to the confidential hotline, you may report harassment to your supervisor, FO Director or Partners HQ, as you feel comfortable. Such complaints must be recorded in writing, either by the complainant or by the supervisor/FO Director to whom it is reported. A Harassment Complaint Form is available in Annex F. Any supervisor or FO Director who becomes aware of possible harassment or retaliation must immediately advise a member of Partners HQ so it can be investigated in a timely and confidential manner.

All harassment complaints will be promptly and thoroughly investigated, and each complaint will be handled as confidentially as possible under the circumstances. Complaints will be investigated impartially and if found to be truthful, Partners Guyana will take immediate corrective action. Anyone found to have engaged in harassment will be subject to appropriate disciplinary action up to, and including, termination of employment.

7.4.2 Protection from Retaliation for Harassment/Bullying Complaint

Partners Guyana prohibits any retaliation against employees who legitimately exercise their rights under this policy or who participate in an investigation. There is to be no interference, coercion, discrimination, reprisal or retaliation against any employee for making a truthful, good-faith complaint or report of a violation. Employees who believe they are being discriminated against as a result of having legitimately filed a complaint or having truthfully participated in an investigation should immediately notify their supervisor, FO Director or Partners HQ.

7.5 Freedom of Association

Article 149C of the Guyana constitution recognizes and protects freedom of association. Workers, without any distinction of any kind, have the right, , to form organizations of their choice, and affiliate to such organizations, under the only condition of compliance with the provisions of the Trade Union Recognition Act Cap 98.07 ("TURA"). No one shall be constrained to be part or not be part of a union, a union requiring a minimum of 40% of the work force's participation. (TURA 31). Negotiations become mandatory if the employer or the union request it. A union may not induce workers to strike (TURA 25).

7.6 Anti-Forced Labor

The Partners Guyana prohibits all forced labor. Forced labor shall mean any work or service exacted from an individual under the threat of any penalty and for which the individual has not voluntarily offered himself. No citizen can be forced into forced labor except in the case of a legal conviction.

7.7 Conflict of Interest

Partners Guyana requires that all potential conflicts of interest be reported immediately to the FO Director and Partners HQ. A personal conflict of interest is a situation in which an employee, or entity representative has a financial interest, personal activity or relationship that could impair the employee's ability to act impartially when performing activities on behalf of Partners Guyana. To avoid a conflict of interest, Partners Guyana does not allow any employee, entity representative or any member of an employee's immediate family to receive a sub-award or have any financial or other interest in the entity selected for a sub-award without disclosing the conflict. Additionally, all employees, and representatives of Partners Guyana must neither solicit nor accept gratuities, favors, or anything of monetary value from sub-recipients or prospective sub-recipients. Any outside business dealings of Partners Guyana's employees must be legal and not conflict in any manner with Partners Guyana's operations. Outside business dealings include, but are not limited to, any investments, loans, employment, or business ownership by Partners Guyana's employees.

Furthermore, contracts or transactions (i) between Partners and one or more of its board members, officers, or employees, or (ii) between Partners and any corporation, partnership, association or other organization in which one or more of its board members, officers or employees are directors or officers, or have a financial interest, shall not be void or voidable solely for this reason, or solely because the board member, officer or employee is present at or participates in any meeting which authorizes the contract or transaction, or solely because his, her, or their votes are counted for such purpose, if:.

1. The material facts regarding the relationship or interest are disclosed or are known to the Board of Directors, and the Board of Directors in good faith authorized the contract or transaction by the affirmative votes of a majority of the disinterested board members or officers, even though the disinterested board members or officers may then become less than a quorum; or
2. The material facts regarding the relationship or interest are disclosed or are known to the Board of Directors and officers voting thereon and the contract or transaction is specifically approved in good faith by a vote of the Board of Directors; or
3. The contract or transaction is fair to Partners as of the time it is authorized, approved or ratified by the Board of Directors.

Common or interested Board members or officers may be counted in determining a quorum at any meeting of the Board of Directors which authorizes the contract or transaction, provided, however, that the interested person or persons shall be excluded from the room during the discussion of the contract or transaction in question and during the vote thereon.

7.8 Confidentiality

Partners Guyana's work makes it essential that employees and consultants do not divulge proprietary company information unless expressly authorized by an officer of the company. Partners Guyana's employees and independent contractors may have access to and become acquainted with proprietary and confidential information such as client lists, rates, financial records, internal structure, internal policies, publications, inventories, computer software and related documentation and similar information, which is owned by Partners Guyana and which is regularly used in the operation of the business of the company. All employee and consultant agree to not use such proprietary or confidential information obtained during employment or contractual relationship with Partners Guyana as a means of making private profit.

Additionally, certain information concerning Partners Guyana's business is a valuable, special and unique asset of the company. Employees and consultants agree not to disclose Partners Guyana's proprietary or confidential information to any person or entity for any reason, except as required in the course of employment or contractual relationship, or required by law or court order; and further agree not to make use of such information his/her own benefit or the private benefit of others.

All files, records, documents, drawings, specifications, equipment and similar items relating to the business of Partners Guyana, including computer software or software documentation, shall remain the exclusive property of Partners Guyana and shall not be reproduced, removed or transmitted from the premises of the company under any circumstances without the prior written consent of the Partners Guyana. Upon termination of employment with Partners Guyana, employees and consultants are required to return all company property to the FO Director.

Employees and consultants also agree that if any trade secret, formula, device, technology, technical information, process, etc. ("invention") is made during the course of employment or contractual relationship, alone or jointly with others which is made with Partners Guyana's equipment, supplies, facilities, trade secrets or time, or which relates to the business of Partners Guyana, or which results from any work performed by me for Partners Guyana, such invention will belong to Partners Guyana and Partners HQ, whom will have full authority to use, transfer or license it. Partners Guyana and Partners HQ will have the right to keep such invention as a trade secret, if it so chooses. It is further agreed that Partners Guyana is not required to designate the employee or consultant as the inventor or author of any such invention if it is distributed publicly or otherwise. Any violation of this policy may lead to disciplinary action, up to, and including termination.

7.9 Drug Free Workplace

It is the policy of Partners Guyana to provide staff members with a working environment that is free from the problems associated with the use of illegal drugs. The use of illegal drugs is inconsistent with the behavior expected of staff members and subjects Partners Guyana to unacceptable risks of workplace accidents or other failures that would undermine Partners Guyana's ability to operate effectively and efficiently.

In addition, the use of illegal drugs is contrary to the mission of Partners Guyana, which includes providing drug prevention education to communities in Latin America, the Caribbean and the United States. In order to carry out this mission, Partners employees must set an example in their behavior inside and outside the workplace. Therefore, employees found to be engaged in the use of illegal drugs or the unlawful manufacture, distribution, or dispensing of a controlled substance, either in or outside the Partners Guyana's workplace, are in violation of Partners Guyana's policies and are subject to disciplinary action, which may include termination. Each staff member must agree to notify Partners Guyana of any criminal drug statute conviction for a violation occurring in the workplace no later than five (5) days after such conviction. Non-compliance with this policy will result in disciplinary action.

7.10 Smoke Free Workplace

It is the policy of Partners Guyana to prohibit smoking on all Partners Guyana's premises in order to provide and maintain a safe and healthy work environment for all employees. Smoking is defined as the "act of lighting, smoking or carrying a lighted or smoldering cigar, cigarette or pipe of any kind."

The smoke-free workplace policy applies to:

- All areas of Partners Guyana building
- All visitors to the Partners Guyana
- All staff and consultants working on Partners Guyana's premises

Smoking is permitted outside the building where designated. Employees who violate the smoking policy will be subject to disciplinary action.

7.11 Alcohol Policy

An employee whose use of alcohol adversely affects job performance is subject to disciplinary action, which may include discharge. Partners Guyana may also require that an employee seek assistance and/or counseling services as a condition of employment in appropriate circumstances.

7.12 Code of Ethics

Partners Guyana has established the below Code of Conduct. It has consequently incorporated these standards, not only in relation with its employees, but also with its consultants, and where the non-respect of all or one of them is a justifying cause of termination of an employee contract or the end of a specific job. Each employee, volunteer, consultant and representative and member of the Partners Network is expected to adhere to a high standard of ethical conduct. The good name of Partners Guyana depends on the way its network and representatives conduct business and the way the public perceives that conduct. Unethical actions, or the appearance of unethical actions, are not acceptable.

Below is Partners Guyana standard code of conduct principals:

1. Sexual exploitation and abuse by employees is a serious misconduct that may result in termination of the employee's contract.
2. Sexual activity with children (persons under 18 years of age) is prohibited without involving the age established in the country. It is not accepted as a defense that there is a misleading assessment of the age of the child.
3. The exchange of money, employment of goods or services for sex, including sexual favors or other forms of behavior used to humiliate, degrade or exploit, is prohibited. This includes the exchange of assistance that must be addressed to the beneficiaries.
4. Sexual relations between humanitarian workers and beneficiaries are strongly censored because they are based on inherent inequalities. This type of relationship transgresses and violates the credibility and integrity of the work of humanitarian assistance.
5. In the event that an employee of the Humanitarian Section is aware of or makes reference to suspicious behavior related to sexual abuse by a co-worker, whether working in the same office or not, he or she should report it to your supervisor or Partners HQ.
6. Humanitarian staff is required to create and maintain an environment that prevents sexual exploitation and abuse and can promote the implementation of a code of conduct. Managers at all levels have special responsibilities to support and develop systems that maintain this environment.
7. All persons interacting with or representing the Partners Network should maintain the confidentiality of information entrusted to them by Partners Guyana and any other confidential information about the organization, its activities, partners, funders, stakeholders or suppliers, that comes to them, from whatever source, except when disclosure is authorized or legally mandated.
8. Persons interacting with or representing Partners Guyana in a foreign country are responsible for knowing and complying with these laws. Furthermore, anyone interacting with or representing the Partners Network must also take care to understand and respect the cultures and customs of the countries where Partners

operates. Anyone working in the international arena should be aware of the US Foreign Corrupt Practices Act. The Act prohibits giving anything of value to officials of foreign governments in order to obtain or retain business. It is prohibited for any representative of Partners Guyana or its network to engage in bribery, kickbacks, payoffs or other corrupt business practices. It is also Partners Guyana's policy to fully comply with all applicable US export, customs and trade control and regulations, licensing/trademarking/copyright requirements and other relevant US and international laws.

9. Partners Guyana intends to provide a pleasant, healthful, comfortable, and professional atmosphere that is free from intimidation, hostility or other offenses which might interfere with the pursuit of our mission. Moreover, Partners Guyana does not tolerate discrimination based on race, color, sex, religion, ethnic origin, indigenous populations, national extraction, political opinion, disability, sexual orientation, economic status, family responsibilities, pregnancy, marital status, age (except to confirm not employing a minor), national ancestry or social origin, or any other legally prohibited characteristic. Harassment or discrimination based on sex or any other legally prohibited basis is illegal and is contrary to the policy of Partners Guyana.

If you know of or suspect a violation of applicable laws, rules or regulations or this Code, you must immediately report that information to the FO Director and Partners HQ. Individuals can also contact Partners confidential hotline at +1 (202)-247-9610. Partners HQ will determine, or shall designate appropriate persons to determine, appropriate action in response to violations of this Code.

Partners Guyana prohibits any retaliation against anyone who makes a good faith report of a suspected violation or who participates in an investigation. There is to be no interference, coercion, discrimination, reprisal or retaliation against any person for making a valid and truthful complaint or good faith report of a violation. Nothing in this policy is meant to, nor should it be interpreted to, in any way limit your rights under any applicable federal, state, or local laws.

7.13 Grievance Policy

Partners Guyana provides employees with the opportunity to bring work-related problems and concerns to the attention of management and to resolve such problems fairly and promptly. Any employee who feels that s/he has been treated unfairly or inequitably regarding a condition or action affecting employment should bring the matter to the attention the FO Director, Partners HQ or to the confidential hotline at +1 (202) 247-9610.

7.14 Whistleblower Policy

Employees have the duty to comply with all applicable laws and to assist Partners Guyana to ensure legal compliance. Partners Guyana encourages its employees to report improper activities in the workplace and will protect employees from retaliation for making any such report in good faith. Employees have the right to report, without suffering retaliation, any activity by the organization or its employees that the employee reasonably believes:

- Violates any local, state or federal law;
- Violates or amounts to noncompliance with any local, state or federal rule or regulation;
- Violates fiduciary responsibilities by a corporation to its stakeholders or employees.

In addition, employees can refuse to participate in an activity that would result in a violation of, or noncompliance with, any local, state or federal statutes, rules or regulations. Employees are also protected from retaliation for having exercised any of these rights in any former employment. The whistleblower protection laws do not entitle employees to violate a confidential privilege of the organization (such as attorney-client privilege) or improperly disclose trade-secret information.

7.14.1 Whistleblower Complaint Procedure

Any employee who suspects a violation of ethics or legal compliance is required to report the situation(s) to the FO Director, Partners HQ or the confidential hotline at +1 (202) 247-9610.

7.14.2 Protection from Retaliation for Whistleblower Complaint

Partners Guyana pursuant to the provisions of the Protected Disclosures Act 2018 is prohibited from discharging an employee or taking other adverse employment action against an employee in retaliation for the employee's good faith complaint about safety and health hazards or other violations of law in the workplace and the environment.

7.15 Labor Disputes

In the event of labor dispute, the employee and Partners Guyana will work to rectify the dispute immediately. In the case that the labor dispute cannot be resolved between the two parties, the Ministry of Labor and Social Protection may be informed which may request an investigation be conducted separate and apart from the foregoing, either party may approach the Guyana Courts for relief.

7.16 Hygiene, Health & Workplace Security

Partners Guyana will take all necessary precautions to effectively protect the life, safety and health of employees. In order to ensure this, Partners Guyana will take the necessary measures that are aimed at:

- Preventing accidents in the workplace;
- Ensuring that all machinery, equipment and other operations have security measures in place and are kept in good condition and will be subject to periodic inspection and maintenance;
- Ensure that the work in the workplace is carried out in an environmentally safe manner;
- Preventing occupational diseases;
- Preventing fires;
- Providing a healthy and clean work environment;
- Providing the necessary clothing and equipment to ensure appropriate protection;
- Providing security guards for the office as necessary;
- Warning employees of any workplace dangers that could impact their health;

- Providing information, instruction, supervision, assistance and training employees and supervisors with respect to Workers Safety and Health;
- Ensuring proper hygiene in sanitary facilities;
- Ensuring that appropriate hygiene is maintained in facilities where food or drinks are prepared;
- Post the *Occupational Safety and Health Act No. 32 of 1997* with explanatory material and the policy in a conspicuous position in the workplace.; and
- Maintaining a distinctively marked "first aid" kit in the office with the grade or quality of materials for dressing as approved by the Chief Labor Officer. The first aid kit at a minimum should contain the following:
    - A leaflet of first aid instructions issued by the Ministry of Health, Housing and Labor;
    - A sufficient number of bandages and sterilized dressings or adhesive wound dressings approved by the Chief Labor Officer;
    - A sufficient number of sterilized burn dressings (small and large);
    - A sufficient quantity of powered bicarbonate of soda and a powdered boracic acid;
    - A sufficient number of sterilized cotton wool, in half-ounce packets;
    - A 2% alcoholic solution of iodine;
    - A bottle of sat volatile having the doses and method of administration indicated on the label;
    - Eye drops prepared and described in the first aid leaflet;
    - A supply of adhesive plaster;
    - A tourniquet; and
    - Safety pins.

Partners Guyana will comply with the measures indicated in the *Occupational Safety and Health Act No. 32 of 1997,* in order to prevent the occurrence of workplace accidents and occupational diseases. All employees share the responsibility for workplace safety.

Employers are responsible for the following in accordance with Section 49 of the *Occupational Safety and Health Act No. 32 of 1997*:

- Using or wear the equipment, protective devices and clothing provided;
- Reporting to his or her employer or supervisor any absence of or defect in any equipment or protective devices and clothing of which the employee is aware;
- Taking care of their personal protective equipment, devices and clothing provided;
- Using or operating any equipment, machine, or device in a manner that will not endanger the employee or any other worker; and
- Not engaging in any prank, contest, feat of strength, unnecessary running or rough and boisterous conduct.

The FO Director is responsible for developing safety awareness and ensuring that all operations are performed with regard for the safety and health of all employees involved. Employees are responsible for continuously practicing safety while performing their job duties. Employees are encouraged to be alert to unsafe conditions and report them promptly to the FO Director. All reports can be made without fear of reprisal.

7.16.1 Housekeeping

Safety is directly related to neatness and cleanliness. Items that are out of place can cause accidents and injuries, and lack of cleanliness can quickly become a health risk. Furthermore, our office reflects our staff and organization to outside guests, so it is everyone's shared responsibility to project the best impression possible.

Employees are expected to keep their work areas neat, organized, and free of clutter or objects that could interfere with the work process or cause accidents. Employees should assist with keeping public areas presentable by:

- Returning tools and supplies to their proper place and condition after use.
- Properly disposing of trash and cleaning spills or other messes.
- Storing limited food items in the refrigerator, and promptly consuming or removing them.

- Making sure hallways, walkways and other publicly visible areas are free and clear of dangerous obstacles or unsightly objects.
- Reporting safety and maintenance issues immediately.

7.16.2 Job Related Injury Reporting

Employees should immediately report all work-related illnesses, injuries, or occupational disease exposures to the FO Director or Partners HQ. Employee should complete the Employee Incident Report Form, found in Annex G. Once reported, the FO Director in conjunction with Partners HQ will determine the next steps.

Partners does not discriminate or retaliate against employees who have filed legitimate job-related injury report. Supervisors will not take or threaten any action to compel or persuade employees not a job-related injury report.

8. Recruitment and Labor Contracts

8.1 Application Process for Personnel

After a position is posted and available, the applicant must complete the Application Form for Personnel, template is provided in Annex H. The applicant will then send the complete application to the FO Director. Only the final list of applicants who meet the qualifications will be sent to the supervisor of the position and Partners HQ, whom will proceed with the recruitment process, with support from the FO Director. Note that all recruitment of staff will be internal and/or external.

8.1.1 Internal Recruitment

In order to promote within Partners Guyana as much as possible, the vacant position may be filled by any employee who would be interested and who, after evaluation, meets the requirements for fill the vacancy. If a promotion is made internally, the employee may be eligible for a salary increase and other changes as determined by the new position.

8.1.2 External Recruitment

When external recruitment for a vacancy is needed, the job offer should be actively advertised and promoted locally and internationally. The advertisement should be clear, accurate and brief, but should also provide terms of reference, necessary training and experience, and how to apply. Advertising notices will be brief, clear, precise and at a minimum provide:

1. Reference terms;
2. Information on the necessary training and experience of the candidate; and
3. Place and deadline for submission of applications

Per Guyana law, any recruitment advertising cannot place requirements on the position that relate to discrimination on the grounds of race, sex, religion, color, ethnic origin, indigenous population, national extraction, social origin, economic status, political opinion, disability, family responsibilities, pregnancy, marital status or age except for purposes of retirement or employment of minors.

Furthermore, it is unlawful in recruitment, selection or employment to discriminate in respect to the above grounds on:

- Arrangements made for the purpose of determining who should be offered employment;
- The advertisement of the job;
- The terms on which employment is offered;
- The refusal or deliberate omission to offer employment; and
- Denying or limiting access to opportunities for promotion, transfer or training or to any other benefits, facilities or services associated with employment.

The FO Director will review all CVs received and the selection criteria will be forwarded to the supervisor of the position and Partners HQ.

8.1.3 Transfer within the Partners Guyana

An employee's transfer means moving from one department to another, to a similar position. The salary remains unchanged. This is not a disciplinary measure. The transfer of an employee is carried out:

1. By decision of the FO Director, when in the interests of Partners Guyana and Partners HQ;
2. At the request of the employee, the case will be considered according to the possibilities within Partners Guyana; and
3. At the request of his immediate supervisor

Any transfer of position requires the decision of the managers of the two (2) departments concerned, FO Director and Partners HQ.

8.1.4 Promotion within the Partners Guyana

Promotion is not automatic. However, following the annual performance evaluation, an exceptional employee may benefit from promotion if there is availability within the organizational structure at Partners Guyana. The promoted employee receives the basic salary corresponding to the new position held, in accordance with the pay grade and category.

8.2 Selection Process for Personnel

Both internal and/or external candidates should be reviewed and interviewed. A selection committee will be organized and must include at a minimum the position's supervisor, FO Director and Partners HQ. It will have two potential phases:

1. An interview of the successful candidates by a selection committee to assess:
    a. The qualifications of the candidate in relation to the profile of the position to be filled;
    b. His/her past experience;
    c. His/her sense of responsibility;
    d. His/her ability to perform the duties of the position; and

    e. His/her ability to communicate.

2. A written or practical test (if required) to judge the technical qualifications of the candidate. This will include a matrix for evaluating candidates through a scoring system. This will support the procurement process for selecting the final candidate to fill the position.

Note: some projects will require specific qualification/requirements before hiring any Key Personnel. Any specific donor requirements should be followed when hiring any personnel.

Final candidate's information will be sent to the FO Director and Partners HQ for final approval. Once approved, the candidate will sign his/her contract and be provided with his/her orientation. All offer letters/agreements should, at a minimum, be signed by both the employee and FO Director.

8.3 Employee Definition

Under Guyana law, any person who provides services under the direction and dependence of another in Guyana is considered to be an employee and is therefore subject to the labor laws.

An independent contractor does not provide services under the direction and dependence of another and is not subject to specific working hours. If an employee is misclassified as an independent contractor, they may bring an action before a labor court to determine whether their relationship constitutes employment and seek the payment of any employment benefits to which they would have been entitled had they been correctly classified as an employee.

8.4 Contract Definitions

There are two main types of contracts in Guyana, contract *of* service and a contract *for* services.

8.4.1 Contract of Services

A contract of service or "labor contract" is any agreement by which a person commits himself to hire out his/her services to another person, under the control or the dependence of the latter, for remuneration.

Per Partners Guyana, individual contracts of employment must be written, and all salary quoted in gross USD. The contract of employment should include all basic terms and conditions of employment such as wages/salaries, hours of work, overtime and leave. If agreed upon, other benefits, which may include sickness benefits, promotion, redundancy, likely duration of the employment, .

Labor contracts shall be drafted in English and 2 copies made. One copy must be given to the new employee, and one for the employer. This includes all new contracts, modifications and/or novation.

All the legally established employee benefits are deemed to be automatically included in any employment contract. The minimum legal terms and conditions apply by default, unless custom or practice in the workplace, or an applicable collective agreement, includes any other term which improves the employment conditions for the employee.

8.4.2 Contract for Services

A contract for services is where a person is engaged to do a task within stipulated guidelines and is an independent contractor.

8.5 Types of Labor Contracts

There is no restriction on the duration of any employment contract. The contract may be executed for an indefinite or a fixed period. The general rule is that contracts are executed for an indefinite period.

Below are the options for labor contracts at Partners Guyana:

- Fixed-term/Temporary contract -The fixed-term contract is the one which term is fixed in advance by the will of the parties. These contracts are legally considered to be an exception (as indefinite term contracts are the norm) and may only be executed when they are necessary due to the incidental or temporary nature of the work or service to be performed. There is no legally established limit to the duration of fixed-term contracts or period after which the employee is deemed to be permanent. When a fixed-term contract expires, the employer must pay the employee all the statutory payments, bonuses and benefits established for permanent employees, but only in the proportion of the contract's term. If the employer terminates the contract before the original fixed term, the employer must also pay the employee damages equivalent to one day's salary for each month of continuous work performed (or the corresponding fraction if they worked for less than a month). This specific amount of damages applies instead of the general redundancy pay that applies for dismissal without just cause. Therefore, although the termination of a fixed-term contract is less costly to the employer, the employer using a fixed-term contract still runs the risk of that contract being considered a permanent contract.

- Open-ended/Permanent contract - The open-ended contract is one whose term is not provided for in advance and which can cease at any moment by the will of the worker or the employer, without prejudice to the legal provisions regulating the termination of the contract of employment. A contract of a temporary nature which is tacitly renewed shall be regarded as having been transformed into a contract of indefinite duration, granting the worker all the benefits and legal advantages attached to it.

8.5.1 Payment Structure for Labor Contracts

Upon the creation of an employment opportunity, the FO Director must determine what type of payment structure for the labor contract will be needed, based on the work performed. The following types of payments options are available:

- Fixed Price – Fixed Price consultant agreements are used mainly for assignments in which the content and length of the services and the required output of the worker are precisely specific and for these reasons the worker can generally control the scope of work and duration of services. Under a fixed price agreement Partners Guyana agrees to pay the worker a predetermined set amount of money for certain products of specified technical natures, such as reports, project designs, etc. that is to be delivered within a specified deadline, the quality of which can usually be readily assessed. Fixed-price agreements provides for a price that is not subject to any adjustment based on the worker's cost experience in performing the contract. It provides maximum incentive for the worker to control costs and perform effectively.

- Time- Based (Hourly, Weekly, Monthly, etc.) – In a time, based agreement, the worker provides services at a pre-determined time-based unit rate and records all hours worked under the scope of work. Time based labor agreements are recommended when the nature and scope of the services provided are such that a scope of work is general guidelines for the activities to be performed and when it becomes difficult to determine the exact time with sufficient precision, which is common in complex scope of works.

8.5.2 Pay Structure

All permanent staff members of the organization, except for consultants, are paid according to the salary schedule of Partners Guyana.

Each position in a category is based on a combination of:

a) Level of responsibility

b) Qualifications required for this position

8.6 Content of Labor Contracts

Each labor contract must include at a minimum the following elements:

- Names, first and last;
- Duration and schedules of the working day;
- Nature of work to be performed, including a list of responsibilities and tasks;
- Place or places where the contract will be performed;
- Wage;
- Signatures of the contracting parties; and
- Places and date of the binding of the contract.

8.7 Obligations of Binding Labor Contract

Per a legal labor contract, below are the obligations and prohibitions of each contracting party.

The workers' obligations are as follows:

- Perform the services as contracted by the employer;
- Comply with the working hours in the workplace and observe the legal or regulatory provisions regarding work;
- Perform the work with efficiency, care, diligence; dedication and in the appropriate manner;
- Save unused materials and preserve in good condition the instruments and tools that are used during work. Note: employees are not responsible for normal deterioration or issues that occur by chance, force majeure, poor quality or defective construction;
- Keep his/her boss informed of possible defects in materials which could cause damage to the company;
- Treat his/her boss and fellow workers with respect;
- Obey the instructions, orders and instructions of the employer or person in charge of the work;
- Provide the necessary assistance in case of an accident;
- Not to disclose secrets of Partners, neither to compete with and be loyal to the employer;
- Strictly observe the measures in place that protect the employee's security and that of their co-workers, and the security of the places where work is preformed;
- Indemnify the employer for all damage caused by his own fault to premises, raw materials and tools; and
- Fulfill all other obligations that would be specifically stipulated in the contract.

The workers' prohibitions are as follows:

- Leave work during normal work hours without a justified cause or without supervisor approval;
- Work while intoxicated or under the influence of narcotic drugs or in any other similar condition;
- Use tools or equipment provided by the employer for any other objective than as normally designated in the course of work;
- Carry weapons of any kind during work hours in the workplace, except in special cases duly authorized by the laws, or in the case of sharp instruments which are required due to the nature of work; and
- Any act that violates or attempts to sabotage the work.

Partners Guyana obligations are as follows:

- Provide a safe and secure work environment for employees;
- Determine, through internal rules, the working conditions and bring them to the worker's attention;
- Provide the worker with suitable work premises and tools in the required hygiene, safety and operating conditions;
- Pay to the worker in full and on the due date the remuneration provided for in the contract, after deduction of any legal and contractual charge for the repayment of loans, advances, proven losses and damages affecting the employer's revenues, property or facilities;
- Provide 12 monthly salaries per year;
- Provide redundancy when required by law;
- Provide sick leave and annual leave;
- Treat the worker with respect, being careful not to inflict any verbal or de facto maltreatment; and
- Fulfill all the other obligations stipulated in the contract.

Partners Guyana prohibitions are as follows:

- Induce or require the workers to buy or consume the company goods or services;
- Demand or accept money or other compensation as means to receiving promotions, bonuses, or other improved working conditions or privileges;
- Forcing or attempting to force an employee to withdraw from unions or legal groups to which they belong, or enter the union or group in order to influence the outcomes;
- Influence your political decisions or religious convictions;
- Retain any items of the employee as a guarantee or compensation;
- Make or authorize mandatory enrollments for employees, except those required by the law;
- Direct or allow work to be conducted in a state of drunkenness or under the influence of narcotic drugs or in any other abnormal similar condition; and
- Any other act that prohibits or restricts any employee right that is protected by law.

8.8 Termination & Suspension of Labor Contract

Labor contracts may be terminated entirely or suspended for a period in certain circumstances.

8.8.1 Temporary Suspension of Labor Contract without Liability for the Parties

- Lack of raw materials to continue working that is not attributable to the employer;
- A legally declared lockout;
- A legally declared strike, the cause of which is not considered by labor courts to be attributable to the employer;
- Unpaid leave or breaks as agreed upon in writing between the employer and employee;
- Provisional prison or other minor arrest in which the employee temporarily cannot attend work;
- Diseases, occupational hazards, required leave under the law; pre and postnatal breaks and other issues that produce temporary disability which inhibits the ability to perform work;

- Force majeure or fortuitous event, resulting in an immediate but temporary stoppage of work (e.g. natural disasters, accidents involving office or materials, fire, etc.); and
- The death or incapacitation of the employer, when this results in the suspension of work as a necessary, immediate and direct consequence. This will only apply to individual employers, and not to companies or other business entities.

8.8.2 Termination of Labor Contract

Employees can be terminated at will and dependent on the contract, with or without notice. The law requires that all salaries and other applicable employee benefits must be paid to the employee up to the date of their dismissal, whether the dismissal is for a just cause. However, if no just cause for termination exists then a redundancy payment is due to the employee. There are a few exceptions in which termination is not legally possible except with prior judicial authorization. These exceptions include dismissal of women workers during pregnancy and after childbirth, compulsory military service, any form of discrimination protect by law, and certified sick leave.

There are 3 (three) ways in which a labor contract can be terminated.

1) *As a matter of law*; without the need for legal proceedings or a court decision.
    - For any reason and without notice during a probationary period of a new employee.
    - On any ground of redundancy.
    - Expiry of the period laid down in the contract
    - Completion of work in the case of contracts concluded for a specific work
    - Grounds for termination expressly stipulated in the contract
    - For serious or gross misconduct.
    - Death of the employee or duly proven case of force majeure
    - Complete and final closure as a result of the death of the employer.

The automatic termination of the individual contract of labor shall entail no liability for the contracting parties in the first six bullets only. The last two bullets remain subject to the legal provisions and may require redundancy.

2) *By mutual consent of the parties* - The cancellation must be confirmed in writing. There shall be no liability for either party following the termination of the individual labor contract by mutual consent.
3) *By the will of one of the parties*

   Resignation with Cause: An employee who wishes to terminate his/her labor contract without any liability for himself/herself shall inform FO Director or Partners HQ on one of the following grounds:

   - Failure to pay the full remuneration at agreed or customary dates and locations;
   - Verbal excesses, insults or threats on the part of the employer;
   - Intentional damage to the instruments or tools of work by the employer or his representative;
   - When the employer or his representative at or outside of the workplace slander, insult or attack an employee that it becomes impossible to coexistence in the workplace and complete the contract (provided that such acts were not provoked during non-work hours);
   - Presence of persons carrying contagious diseases if the worker is to remain in immediate contact with the affected person;
   - Threat to the safety or health of the worker due to lack of hygienic conditions in the workplace or failure to comply with preventive and safety measures prescribed by law;
   - If the employer acts recklessly, carelessly or inexcusably regarding the safety conditions of the workplace;
   - When the employer transfers work to another employee in a lower position with less pay and it fundamentally alters the conditions of work;

- Breach of obligations imposed on the employer by contract or by law (ref: Obligations of Binding Labor Contracts).

<u>Resignation</u>: If an employee decides to voluntarily terminate the work relationship; he/she must notify the employer beforehand in writing. The notice must be given in accordance with the rules established in the Labor Code.

<u>Termination with Cause</u>: Partners Guyana may terminate the labor contract of an employee without liability must terminate based on just cause:

- If the employee has acted with lack of integrity and honor during the execution of tasks and has incurred in slander against the employer or his representatives,
- If the employee commits any of the aforementioned acts against one of his fellow co-workers, causing alteration to the workplace's order or the interruption of the work,
- If during non-working hours the employee commits any of the aforementioned acts against the employer or his representatives,
- If the employee commits any felony or fault against the property of the employer or fellow co-workers or a third party in the establishment, and if the employee causes serious damage, intentionally, with negligence or recklessness, to the machinery, equipment, raw materials, products and any other objects related to their works,
- If the employee reveals secrets,
- If the employee does not attend work during two consecutive days or six half days in a period of one month,
- If the employee manifestly refuses to adopt preventive measures or follow procedures established by law, to avoid accidents or illnesses; or when the employee refuses to adopt the instructions given by the employer o his representatives to obtain better performance and efficiency in his tasks,

- If the worker deceived the employer pretending to have capacities or knowledge he does not poses or by means of false letters of recommendation or certificates,
- If the employee has been sentenced to prison by irrevocable judgment,
- If the employee violates any other obligation of the employment agreement.

Termination without Cause: If Partners Guyana terminates the for any reason that differs from what is established by law or agreement, the Employer must pay the Employee payments established by the Labor Code that is in force, such as redundancy for time served and proportional labor benefits (i.e. Annual leave). Prior to terminating an employee for reason of redundancy the employer must inform and consult the employee and the Chief Labour, Occupational Safety and Health Officer, on possible measures that could be taken to avert or mitigate the effect of such redundancy. Furthermore, the following reasons do not constitute good or sufficient cause for dismissal or disciplinary action:

- An employee's race, sex, religion, color, ethnic origin, national extraction, social origin, political opinion, family responsibility, or marital status;
- An employee's age, subject to any law or collective bargaining provisions regarding retirement;
- A female employee's pregnancy or a reason connected with her pregnancy;
- An employee's absence from work because of sickness or injury certified by a registered medical practitioner;
- An employee's absence from work due to compulsory military service or other civic obligation in accordance with any law;

- An employee's participation in industrial action in conformity with the provisions of any law or collective labor agreement;
- An employee's refusal to do any work normally done by an employee who is engaged in industrial action as described above; and
- The filing by an employee of a complaint or the participation in proceedings against an employer involving alleged violations of any rule or law.

8.9 Probation Period 90 Days

All new employees are subject to a probationary period of 90 days. During this trial period he/she may terminate his/her services without notice. One week before the end of the probationary period, the candidate will be evaluated and if he/she does not meet the requirements of the position he/she may be terminated at the end of his/her probation, without notice, but he/she will be entitled to the leave proportional to the number months of service and will be compensated for all time worked. Once the trial period expires, if the employment continues, all the statutory rights automatically apply to the employment contract.

8.10 Mandatory Notices for Termination of Labor Contract

Except for probationary employees or employees dismissed summarily, the employer or the employee who wishes to terminate a written labor contract must first give written notice to the other party.

8.10.1 Mandatory Notice for Termination of Labor Contract – Employee Responsibility

If employees have worked for at least 90 days, the employee is required to provide written notice to the employer. Notice shall not be required in case of fault or failure of on behalf of Partners Guyana. The required employer notices are below based on length of service:

Service Period	Notice Period
Less than 1 year	2 Weeks

From 1 or more	1 Month

8.10.2 Mandatory Notice for Termination of Labor Contract – Employer Responsibility

The notice is compulsory only for employees who have provided at least 90 days of work with Partners Guyana. Notice shall not be required in case of fault or failure of any of the parties as listed above. The required employee notices are below based on length of service:

Service Period	Notice Period
Less than 1 year	2 Weeks
From 1 or more	1 Month

Exception: if an employee who is warned in writing commits a similar offence within six (6) months the employer can terminate without giving the necessary notice.

8.11 Statutory Benefits – Redundancy Payments

Dismissal with just cause: Employees terminated with cause do not receive redundancy payment.

Dismissal without just cause: The Termination of Employment and Severance Pay Act 1997 stipulates, that on termination of employment, an employee who has completed one (1) year or more of continuous employment with an employer shall be entitled to be paid by such employer severance or redundancy allowance as follows:

Service Period	Redundancy Payment
From 1 year to 5 years	1 weeks' pay per year of service
From 6 years to 10 years	2 weeks' pay per year after 6 years of services
From 11 or more years of service	3 weeks' pay per year after 11 years (maximum of 52 weeks)

Resignation: Redundancy payments do not apply if the employee terminates the contract voluntarily.

8.12 Record Keeping for Personnel

Partners Guyana requires that all documentation related to the solicitation, hiring, review and termination of employees be retained in secure personnel folders. These folders should all reprimands, warnings and suspensions of each for each employee with dates and reasons. Any required documents/provisions from the donor should also be included in the personnel record. Individual personnel folders/files should be maintained for all employees. All information provided by the employee is, and remains, confidential, and the documents in his/her file may not in any way be accessed by unauthorized personnel.

For each Partners Guyana staff member there will be an individual file which will include:

1) The Vitae curriculum;

2) A copy of the certificates and diplomas mentioned in the CV;

3) The job application form;

4) The employment contract;

5) The job description;

6) Any documentation indicating a salary increase;

7) The Employee Evaluation Forms;

8) Any document relating to a change in position, transfer or promotion;

9) Any offer letters or warning letters; and

10) Record of paid leave or any other special leave requested and obtained

11) All documents related to:

   a) Resignation

   b) Revocation

c) Lay-off

d) Other causes of separation.

The Partners Guyana reserves the right to verify the authenticity of any document submitted by the Employee.

8.12.1 Access to Personnel Records

The only individuals at Partners Guyana, who have access to the personnel files, are FO Director, the Administrative and Financial Director. Employees will not be allowed to access or review their personnel files, however, upon special authorization and approval from FO Director, the employee may review their file. This review must be done in the presence of FO Director.

9. Worktime, Workdays and Holidays

9.1 Normal Daytime Work Hours

The Labour (National Minimum Wage) Order 2016 provides that the normal work week shall be forty hours which shall not exceed five days per week and 8 hours per day/shift[1] and any hours beyond the normal hours shall at a minimum be paid at the rates set by law.

Work hours are time when the worker is available to the employers. Rest periods are time when the worker is not available for the employer's work.

In accordance with the Guyana Labor Code, normal hours are agreed upon by Partners Guyana and the employee. Partners Guyana observes the following working days and hours: Monday to Friday from 9 am to 5 pm, or 40 hours of work per week. Normal hours are up to 12 hours per day, but no more than 40 hours per week (7 consecutive days). All hours worked in excess of normal agreed work hours are overtime.

[1] Information provided by Senior Labour Officer at the Department of Labour

9.2 Overtime and Limitations

Overtime refers to any hours worked beyond normal working hours listed above or agreed upon in writing between Partners Guyana and the employee. All hours worked in excess of the prescribed or agreed hours are compensated with an additional 50% surcharge. All overtime hours therefore are compensated at 1.5 times the hourly salary. However, Partners Guyana believes that the daily work assigned to its employees can be done as part of her/her regular schedule. Therefore, except in case of emergency or force majeure, all overtime must be approved by the supervisor. An employee requesting overtime must obtain the approval of his/her supervisor prior to overtime hours being worked. Any overtime worked without supervisor approval, will be paid, however disciplinary action will be taken including up to termination. Overtime is not considered as necessary because of the slowness of an employee in the performance of his/her duties, whether it is the improper performance of duties and/or the obligation to seek or correct errors.

9.3 Rest and Break Time

Below is the list of rest and break times allotted to all employees at Partners Guyana, in accordance with Guyana law:

- Lunch Break - the worker has a right to a rest break of at least one (1) hour within the working time, which must be counted as paid working time. For employees who work overtime in a particular day, the lunch break is extended 1.25 hours.
- Break for Pregnant Women - During the period of apparent pregnancy, the woman shall be entitled to two rest periods per day of at least half an hour each, in addition to the half-time rest for the meal. Prenatal breaks will be extended according to your physical conditions, by medical prescription. These moments of rest are paid.
- Breastfeeding Break - Any mother breastfeeding her child shall be entitled to two rest periods per day of at least half an hour each, in addition to lunch break. The nursing period starts from the day when the mother returns to work and up to ten (10) months afterwards, except if this period must be extended due to medical prescription. These moments of rest are paid.

9.4 Weekly Rest Day

Every worker has the right to enjoy a paid rest day after each week after five or six continuous days of work (number of days depends on the normal employer work week), regardless of the number of hours worked during this period. This day of rest includes at least twenty-four (24) consecutive hours. Payment is made based on the daily wage for workers with a fixed salary.

9.5 Holidays

All employees at the Partners Guyana will be granted the following non-working holidays in accordance with local Guyana law. If an employee must work on a holiday, the employee is paid a 50% surcharge, not including the increase for overtime, or payment of weekly rest. Additional paid holidays may be granted at the discretion of Partners HQ.

The legal holidays in Guyana are:

- 1 January - New Year's Day
- 23 February – Republic Day
- Phagwah – February or March
- Good Friday (Friday before Easter)
- Easter Monday
- 1 May - Labor Day/International Workers' Day
- 5 May – Arrival Day
- 26 May - Independence Day
- 1st Monday in July - Caricom Day
- 1 August – Emancipation Day
- Eid-Ul-Adha - Varies
- Deepavali – October or November
- Youman-Nabi - Varies
- 25 December - Christmas Day
- 26 December - Boxing Day

10. Wages and Social Benefits

10.1 Wages

All employees will be remunerated for work provided to Partners Guyana. This wage or salary can be paid per unit of time, per piece work or it can be fixed.

In order to receive remuneration for time worked, all employees will need to complete timesheets. Time records are legal documents and the basic source of information for payroll purposes; therefore, time worked must be reflected accurately and in accordance with the Section 10.3 Timekeeping. All staff is responsible for approving their timesheet to certify the accuracy of all time recorded. Each supervisor will review for accuracy and approve the time sheets after the employee submits. Remuneration to all employees will be based on the approved timesheets only. All tax and other required deductions as mandated by local law will be withheld from each paycheck.

Salaries will be paid no later than the last working day of each month by bank transfer.

10.2 Wage & Leave Advances

No wage or salary advances are allowed. Payroll is issued after the hours worked are completed and done. Furthermore, no advance leave for vacation, sick, or other leave may be taken.

10.3 Timekeeping

In order to ensure accurate timekeeping in the field, Partners HQ will require use of the electronic timekeeping and accrual platform called Replicon. Each employee will be responsible for utilizing his/her account to accurately record hours worked and request all types of leave. At the end of each week, employee will be responsible for reviewing and certifying their hours worked by clicking "submit" timesheet in Replicon. Subsequently, the respective employee's supervisor will need to log in and review and approve of the hours worked and click "submit." All timesheets will not be considered completed until both the employee and the supervisor have certified the timesheet. Monthly, all timesheets should be printed and filed in accordance with 4.2 Filing and Records.

Any leave that is not requested and recorded in Replicon correctly will be disallowed and not approved. Failure to accurately report time and/or leave requests can result in disciplinary action, up to and including termination.

10.4 Pay Slips (Paystubs)

All employees should receive a pay slip with their salary payment (regardless of method of payment) that documents the details of the payment. Pay slips should include the following information:

1. Name of employee
2. Period to which the payment applies
3. Units, rate, and extended amount of gross salary or wage payments
4. Units, rate, extended amount and description for each additional category of pay
5. Units, rate, extended amount and description for each deduction
6. Taxes withheld on behalf of the government or other taxation authority
7. Subtotaled net pay amount

The pay slips are completed using information from the reviewed and approved monthly payroll timesheets.

10.5 Bonuses & Benefits

10.5.1 Health Insurance

Health insurance is provided to all Partners Guyana staff and 100% paid by Partners Guyana. Dependents may be eligible for coverage but are 100% the responsibility of the employee.

10.6 Wage Deductions

A deduction is any withholding from an employee's salary payment made by Partners Guyana.

10.6.1 Statutory Deductions

The following deductions are mandated by Guyana law to be withheld from all remuneration payments.

- Guyana Revenue Authority (GRA) (Income Tax)
    - Employers are required to deduct and remit pay-as-you-earn (PAYE) to the tax authority by the 14th day of the month following that in which the employment income was paid.
    - Income tax of residents is calculated by applying a progressive tax rate schedule to taxable income as follows:

Taxable Income Bracket	Tax Rate on Income in Bracket
GYD	***Percent***
Up to GYD1,440,000	28%
Over GYD1,440,000	40%

Note: Rates will be updated in accordance with Guyana law as required.

    - Payments to resident individual contractors in excess of GYD500,000 are subject to resident individual contractor tax. This tax is imposed as a withholding tax at a rate of 2% on each payment. This tax applies with respect to contracts for the supply of services, goods, materials, equipment or personnel in the furtherance of the services. Contractor tax must be paid to the Guyana Revenue Authority (GRA) within 30 days after the payment.

- NIS: National Insurance Scheme (NIS)
    - Both the employee and the employer are required to participate in the National Insurance Scheme which covers all persons between the ages of 16-60 years who are engaged in Insurable Employment. Contributions at the following rates are compulsory and must be deducted by the employer:
        - Employee: 5.6% of insurable earnings
        - Employer: 8.4% of insurable earnings
    - The insurable earnings ceiling is GYD 220,000 per month
    - The tax will be withheld monthly by the employer, and subsequently paid into the NIS by the 15th day of the following month.

10.6.2 Other Deductions

The following deduction may only be made when there is a prior written agreement between the employee and Partners Guyana:

- Deduction to reduce a salary advance
- Reimbursement for damages to office, products, etc.

10.7 Paid Leave

All employees will be entitled to the following paid leave, in addition to all the holidays mentioned above.

10.7.1 Annual Leave

Pursuant to Guyana law all employees are entitled, to a paid leave of at least one (1) working days for each month worked. The total yearly annual leave is 12 working days. Each month, 1-day of paid leave will be accrued. For an employee with less than one year of service, the number of annual vacation days = the number of months of service x 1 day. The vacations must be provided, and the employer cannot compensate for this benefit in another manner, except upon termination. The annual leave does not increase by law based on years of service. On January 1st of each year, the annual leave accrual balance will reset. The maximum carry over value is up to five (5) days of annual leave. Any days above five (5) days will be fortified.

Employees cannot accrue vacation periods year by year with the purpose of receiving a longer vacation period afterwards. Labor law provides that all employees must receive the complete, uninterrupted vacation period, meaning that the employer cannot ask an employee to suspend it. Furthermore, any agreement to relinquish the right to an annual holiday with pay or to forgo such a holiday shall be void.

Non-working holidays and interruptions of work due to maternity benefiting the worker shall not be deducted from the 12 working days of annual leave. All annual leave requests must be tracked and recorded properly on the employee's timesheets.

An employee who, after two days of ending his/her annual leave does not show up for his position without just cause, is considered to have resigned.

10.7.1.1 Annual Leave Payout upon Termination

In case of suspension, dismissal or resignation of the employee for any reason before the expiration of his year of service, and whatever the duration of employment, the worker is entitled to payment of his/her portion of annual leave he/she didn't receive in the last five years. Employees are entitled to the number of days of regular annual leave accumulated up to the date of termination. The calculation of this payment will be based the average salary for the past three months including regular hours and any overtime. Partners Guyana should keep records which demonstrate compliance with these provisions of the Leave with Pay Act Chapter 99:02.

10.7.2 Sick Leave

There is no statutory entitlement to leave for sickness or bereavement. However insured individuals who qualify may receive a sickness benefit from the National Insurance Scheme in cases where they are rendered temporarily incapable of work otherwise than as a result of employment injury[2]. Sickness benefits are subject to a maximum of twenty-six weeks in any continuous period of incapacity for work[3]

Similarly, a funeral benefit is payable on the death of a qualifying insured person or the spouse of an insured person[4] by the National Insurance Scheme to the person who has met or is liable to meet the cost of the funeral of the deceased person[5].

As an additional benefit, all employees are entitled to a total of 10 days of sick leave per year without a reduction in salary. Each month, .833 days of paid sick leave will be accrued. If the

[2] Regulation 20 of the National Insurance and Social Security (Benefit) Regulations
[3] Regulation 24 of the National Insurance and Social Security (Benefit) Regulations
[4] Regulation 34 of the National Insurance and Social Security (Benefit) Regulations
[5] Regulation 35 of the National Insurance and Social Security (Benefit) Regulations

employee does not have one year of service, sick leave will be calculated in proportion to the length of service already provided. Sick leave is not cumulative nor paid out upon termination or resignation of the employee for any reason before the expiration of his year of service. On January 1st of each year, the sick leave accrual balance will reset. The maximum carry over value is up to three (3) days of sick leave. Any days above three (3) days will be fortified.

Sick leave will only be granted upon presentation of a medical certificate issued by the attending physician. This certificate is mandatory for any sick leave exceeding two (2) days. All sick leave requests must be tracked and recorded properly on the employee's timesheets. Payment for sick leave is made by the National Insurance Scheme after the third day of illness.

10.7.3 Maternity Leave (Pre and Post Natal)

Female workers are protected during pregnancy and after childbirth by the Constitution of Guyana Cap1:01[6], Termination of Employment and Severance Pay Act Cap. 96:01[7] and the Prevention of Discrimination Act Cap. 99:08[8] from discrimination, disciplinary action or dismissal for her pregnancy or for reasons connected to her pregnancy.

Maternity benefits are paid by the National Insurance Scheme pursuant to the National Insurance and Social Security (Benefit) Regulations made under the National Insurance and Social Security Act Cap. 36:01 to a woman who is an insured person or whose spouse is an insured person for a period starting not earlier than six weeks before the expected week of confinement and continuing until the expiration of six weeks after the week in which her confinement occurs or such longer period as the General Manager of the National Insurance Scheme may determine in the circumstances but not exceeding the maximum period of twenty-six weeks[9]. Expecting mothers who qualify are therefore entitled to 13 – 26 weeks

[6] Section 149 of the Constitution of Guyana Cap. 1:01
[7] Section 8 of the Termination of Employment and Severance Pay Act Cap. 96:01
[8] Section 4(2) of the Prevention of Discrimination Act Cap. 99:08
[9] Regulation 29(1) of the National Insurance and Social Security (Benefit) Regulations

maternity leave. Parental leave for the father is unavailable in Guyana. All maternity leave must be tracked and recorded properly on the employee's timesheets.

10.8 Benefits Accruals

Some types of benefits may be paid out directly when they are earned, such as health benefits and therefore these types of benefits should be recorded as an expense directly in the period in which they are earned and paid.

Other benefits, such as annual leave, redundancy pay, etc. are earned over time and will only be paid out later as defined by the policy above. In order to reflect the future commitment to pay as well as the proper allocation of the expense to projects, these types of benefits should be accrued monthly on the books. The amount that is earned each month should be calculated and recorded as an expense and, since no funds will actually be disbursed until the benefit is paid out in the future, an offsetting liability should be set up on the balance sheet. When the benefit is eventually paid, the payment will clear the liability account.

It is the responsibility of the FO Finance Manager to analyze Partners Guyana's staff benefits package to determine if a benefit should be accrued. The FO Finance Manager must ensure that benefits accruals are well documented, as these accruals can carry over for an extended period. Accrual accounts should be reconciled monthly and proof of the reconciliation sent to Partners HQ each month. The leave accruals should match the Replicon timekeeping system totals for each employee

10.9 Social Benefits

The following social benefits will be provided to all employees of Partners Guyana.

10.9.1 Maternity Rights

Women workers are protected during pregnancy and after childbirth from discrimination, disciplinary action or dismissal for her pregnancy or reasons connected with her pregnancy by the Constitution, the Termination of Employment and Severance Pay Act and the Prevention of Discrimination Act.

10.9.2 Worker's Compensation

Every employee may recover damages related to personal injury, or the wife, husband, parent or child may recover damages related to the death of an employee which resulted from personal injury. The recovery of damages for personal injury or for death resulting from personal injury is provided for by the Accidental Death and Workmen's Injuries (Compensation) Act. Therefore, it is obligatory for every employer to pay due care to occupational safety and health and provide compensation for personal injuries or for death resulting from personal injuries from accidents occurring in the course of employment. In assessing damages for personal injury, or death resulting from personal injury, no account shall be taken of any of the following monies paid or payable as a result of injury or death:

- Payments under any contract of insurance,
- Benefits under the National Insurance and Social Security Act,
- Payments by way of pension or gratuity.

10.9.3 NIS

Every employer is obliged to ensure that all workers contribute to Guyana's National Insurance Scheme.

The National Insurance Scheme extends Social Insurance Coverage on a compulsory basis, to all persons between the ages of sixteen (16) and sixty- (60) years who are engaged in Insurable Employment. Coverage is also extended on a voluntary basis, to persons who cease such employment before reaching age sixty- (60) years, until the attainment thereof. Employed Persons outside this age range who are in Insurable Employment are also covered, but for Industrial Benefits only. However, Self-employed Contributors are not covered for Industrial Benefits. Both the Employer and Employee pay Contributions into the Scheme. The total Contribution for Employed Contributors is 14% of the actual salary paid to the Employee. This is derived from a 5.6% deduction from the Employee's pay, and the remaining 8.4% paid by the Employer on behalf of the Employee.

Insured Persons' Rights

Long Term Benefits	Short Term Benefits	Industrial Benefits
Old Age Benefit	Sickness Benefit	Injury Benefit
Funeral Benefit	Maternity Benefit	Injury Benefit Medical Care
Invalidity Benefit	Sickness Benefit Medical Care	Industrial Death Benefit
Survivors' Benefit		Disablement Benefit
Constant Attendance Benefit		

For each of the benefits, NIS has an established procedure through which qualifying employees can apply for their appropriate benefits as the circumstances require. The procedures are technical and are outlined in the National Insurance and Social Security Act Cap. 36:01 and the regulations made thereunder and on the NIS Website: www.nis.org.gy.

11. Employees

11.1 Job Descriptions

All permanent field staff positions should have job descriptions that are established, accurate and up to date. Job descriptions should reflect the actual work undertaken and should clearly outline the expectations of the worker employed in that position. A copy of the job description should be provided to each staff member when they commence work.

At times the employee supervisor should give feedback to their staff member based on a comparison of their work performance and the expectations in the job description. Partners recommends that this be in correlation with midterm or yearly performance reviews. Job descriptions should be used in the performance appraisal process to assess the employee's achievements and performance in accordance with the process established by the FO Director.

Should Partners Guyana choose to alter the duties and responsibilities for a position, the job description should be subsequently altered. The decision to alter a job description must be made by the FO Director and employee's supervisor. If the resulting decision has budget implications, approval is also required from Partners HQ.

11.2 Performance Evaluations

The employee's supervisor will conduct a written performance evaluation on an annual basis. Initial performance evaluations will generally be performed after three months of employment upon the end of the probationary period. This evaluation will not be used as basis for salary increases. The evaluation will be written and will be based on available job descriptions, standards of performance, and such other factors which Partners Guyana determines to be appropriate. Employees will have the opportunity to review, evaluate and discuss their performance as well as obtain feedback from Partners Guyana. Standards for evaluation templates will be provided by Partners HQ and found in Annex I.

11.3 Salary Adjustments

Salaries for all employees are reviewed no less than 12 months after the last salary review. Adjustments to salaries are merit-based changes deriving from the performance of an individual. In all instances, increases are dependent on the overall financial health of the organization, **all merit-based salary adjustment recommendations must be approved by Partners HQ**. The template for all salary increases is provided by Partners HQ and found in Annex I.

11.4 Salary Advances

Salary advance are not provided under any circumstances.

11.5 Dress Code for Personnel

The image of Partners Guyana is reflected in the presentation of each of its employees. Partners Guyana dress code is business professional clothes from Monday to Thursday.

Friday is informal and casual clothes may be worn. If employees have a field visit, it is recommended that they consider the location and to dress accordingly. All visits to the US Embassy or USAID require formal dress.

Each employee is expected to dress and groom appropriately for the job, presenting a clean and neat appearance. Attire should promote a businesslike, professional attitude and image in keeping with the employee's job and overall work environment. Any employee unsure about appropriate attire or grooming should consult with his or her supervisor. In setting standards for dress and grooming, supervisors will consider exceptions for any religious or similar considerations that are requested.

If an employee's dress or grooming does not comply with established standards, it will be discussed with the employee and the employee may be sent home for the remainder of the day (without pay) or to change clothes and return to work. If discussions fail to bring the desired result, the supervisor may initiate disciplinary action.

11.6 Communicating Absences or Delays

If an employee is delayed arriving to work or absent, he/she must notify his/her supervisor with as much advanced notice as possible. In the case of an unforeseen delay or absence, the employee will be required to call and notify his/her superior. If the delays or absences become too frequent or occur without notification, the supervisor must address a memo to the FO Director documenting such incidents. If the cumulative absences or delays in work are consecutive or unjustified Partners Guyana reserves the right to take disciplinary action, up to and including termination. If an employee is absent due to illness beyond two (2) consecutive days, he/she must provide a doctor's note or medical certificate, otherwise the employee may be considered as resigning after the third consecutive day.

The FO Director of Partners Guyana may terminate the employment agreement of any employee who is absent from his/her workstation two (2) consecutive days or six (6) half days in a period of one month without notice or justification is automatically considered as resigning from his/her position.

An employee who wishes to be delayed or absent for a valid personal or professional reason during working hours, must first seek and obtain the authorization of his/her immediate supervisor.

11.7 Dispute Resolution

Regrettably, conflict can occur in any work environment. To resolve the conflict in an expedient, yet fair manner, Partners Guyana recommends the following process for conflict or dispute resolution.

1. Speak directly to the person you are having the dispute with. Many times, disputes arise due to misunderstandings and miscommunications.
2. If speaking to the individual does not work, please speak to your supervisor, FO Director, or any other member of Partners HQ. Then the supervisor, FO Director, or Partners HQ will arrange a meeting between those involved in the dispute, to determine a resolution.
3. If the above options are unable to resolve a workplace dispute, the parties may be referred to mediation by an outside third party. The resolution of the third-party mediator is binding on both parties of the dispute.

11.8 Disciplinary Action

Violations of this policy may result in discipline up to and including termination of employment. Note: Nothing in this policy is meant to, nor should it be interpreted to, in any way limit your rights under any applicable local laws.

Partners Guyana may decide in its sole and complete discretion to warn, discipline, suspend or discharge employees with or without progressive disciplinary actions. The appropriate action will depend on the severity of the problem, the employee's past performance or the needs of the business.

Unacceptable behavior, which does not lead to immediate dismissal, may be addressed with a verbal or written warning. Written warnings will include the reasons for the supervisor's dissatisfaction and any supporting evidence. Employees will have an opportunity to defend your actions and rebut the opinion of your supervisor at the time the warning is issued. Disciplinary actions may also include suspensions or other measures deemed appropriate to the circumstances.

All pertinent facts will be carefully reviewed, and the employee will be given a full opportunity to explain his or her conduct before any decision is reached. The FO Director will give a second opinion concerning the unacceptable behavior before dismissal occurs.

11.9 Reasons for Disciplinary Action

In establishing rules of conduct, Partners Guyana has no intention of restricting the personal rights of any individual. Rather, we wish to define the guidelines that protect the rights of all employees and to ensure maximum understanding and cooperation. The following list of work rules is an illustration of the type of behavior that will not be tolerated by Partners Guyana. This list is not all-inclusive. Any employee who violates any of the work rules listed below may be subject to disciplinary action, up to and including termination of employment. The level of disciplinary action taken will be determined at management's discretion and judged by the severity of the violation:

- Failure to comply with Partners' Guyana procedures, policies or practices.
- Submission of false, misleading or incomplete information to obtain employment.
- Failure to comply with Partners' Guyana Proprietary Information and Confidentiality Policy.
- Theft or inappropriate removal or possession of Partners' Guyana property.
- Falsification of timekeeping records.
- Negligence or improper conduct leading to damage of employer-owned or client-owned property.
- The use, influence, purchase or sale of illicit drugs, controlled dangerous substances (excluding lawful use of prescribed medication) or alcohol on Partners Guyana's property or at a work site during working hours.
- Possession of weapons, explosives or firearms on company property.
- Committing violent acts or threats of violence.

- Committing acts of illegal discrimination or harassment.
- Insubordination, including refusal to perform assigned tasks or the performance of assigned tasks in an inappropriate manner.
- Violation of safety or health rules.
- Excessive absenteeism and/or tardiness without a proper excuse.
- Failure to meet performance standards.
- Failure to communicate and work well with others.

12. Risk Assessments & Contractor/Sub-recipient Monitoring

12.1 Risk Assessment Guidelines & Process

Partners Guyana risk assessment validates that potential contractors/sub-recipients are viable, legitimate businesses and confirms that they have the financial capability and organizational resources to provide the required services. At the same time, it makes sure that contractor/ sub-recipients are not engaged in questionable ethical or legal activities.

Each time a new contract/agreement valued at UDS $5,000 or more is signed, Partners Guyana will be required to send Partners HQ a completed Risk Assessment. The Risk Assessment template is found in Annex J.

12.2 Frequency of Risk Assessment

For ongoing contractor/sub-recipient monitoring activities, a follow up Risk Assessment should be completed annually in January. The completed and updated annual Risk Assessments for all contract/agreements over USD $5,000 must be sent to Partners HQ by January 31st.

13. Procurement

13.1 Procurement Process

In Guyana, a full procurement is required for all goods and services valued at USD $2,500 or more. It is required that an appropriate competitive process be utilized and fully documented (e.g., market research for commodities/off-the shelf items; three quotes for lower expected values; full and open competition/tender for higher expected values, etc.) At minimum, a proper procurement process requires:

- Specifications, scope of work or technical requirements for the goods or services to be purchased.
- A defined criterion for selecting a good or service provider (e.g., price, capacity to deliver on time, quality of output, past performance where applicable, etc.).
- Approval from the donor to make the purchase when required.
- Solicitations of three (3) quotes or request for proposals from a pool of qualified providers or candidates.
    - In the absence of three submitted quotes or proposals, then a clearly documented memo for justification demonstrating that efforts were taken to obtain three quotes or proposals must be prepared and submitted as part of the procurement documentation.
- A memo that clearly documents the approved bid/proposal and analysis that documents the "procurement story" behind how the preferred supplier was selected and how the evaluation criteria were utilized.

In rare circumstances a sole source transaction may be permitted. A sole source transaction is one that normally would require full procurement; however, given certain circumstance, the purchase will be approved without full and open competition. This approval can only be forthcoming in writing from the FO Director or Partners HQ. Partners Guyana should only consider sole source procurements in cases where there is clear evidence that the work is "so specialized" in nature that there is only one entity that could complete it. When an Employee, Representative or Affiliate proposes sole source procurement, he/she must provide clear written justification documenting the process and efforts used for determining that there are no other qualified providers.

14. Travel Policies and Procedures

14.1 Policy Overview and Applicability

The objective of this policy is to manage a travel process fully compliant with the 2 CFR 200 and Partners Guyana's rules and regulations with guidance from U.S. Government procedures.

The financial goal of this policy is to increase accountability and efficiency of travel expenditures and to ensure compliance throughout the full process of USG regulations, 2 CFR 200, and other applicable laws, including timely clearance of all travel reports (expense reports, and per diem payments).

This policy applies to all Partners Guyana travelers unless otherwise indicated below. Specific guidance at a country and project level may be prepared on a case-by-case basis and approved by the CFO or CEO. In no event, shall these country or project-specific policies be out of compliance with the procedures and cost/time values identified herein.

14.2 Requesting Travel Authorization

Staff and consultants considering a trip must discuss with their supervisor the need for the trip, activities to be conducted, funding for related costs, expectations, etc. For all travelers including staff, consultants, volunteers and others traveling under Partners Guyana funding, a travel authorization (TA) must be prepared prior to travel and booking of flights, hotels, etc.

All field staff and local consultants are required to complete a travel authorization, using the standard template for Field Office staff travel, and receive approval from their respective supervisors. Prior to travel all staff will complete the Travel Itinerary & Per Diem Request Form. This form will collect the following information:

- Traveler's Full Name on official government ID (e.g., Passport)
- Date Requested

- Purpose of the Trip/ Scope of Work to be Performed
- Dates of Travel
- Proposed Itinerary
- Per diem requested

Once the form is completed, it will be uploaded into the Replicon platform at: https://login.replicon.com/. Employees will create a new expense report in Replicon to request approval for the travel authorization and per diem payment. The form will be uploaded into the Replicon database as supporting documentation for the per diem request. The employee will electronically submit the request for approval. The respective supervisor will then review the proposed travel itinerary and per diem request, and either approve or reject for modification electronically. Once a fully approved travel itinerary and per diem request are in Replicon, employee can proceed with remaining travel plans and bookings.

14.2.1 Itinerary Changes

The appropriate supervisor should approve the traveler's itinerary changes. After receiving approval from the supervisor, travelers can contact the appropriate agency to make the necessary changes. Most importantly, it is critical that the supervisor notifies the FO Finance Department, to ensure that the per diem amount or other changes can be made as necessary. In emergency circumstances, when a supervisor is not available or after hour changes must be made immediately, it is left to the discretion of the travelers. However, they are required to notify their supervisor once the change(s) have been made. Note that the supervisor reserves the right to not approve the change. In such instance, the traveler will be responsible for any difference in cost associated with the change. Disagreements will be resolved by the CFO at Partners HQ.

14.3 Traveler Definitions

Partners' travel policy is broken out based on three traveler types. All travelers are expected to comply with and follow the provisions in their respective categories as follows:

- US based/HQ
    - US based/HQ are all individuals with their principle desk location at HQ.
    - This includes but is not limited to:
        - HQ Staff
        - Consultants
        - Interns
        - Telecommuting employees, etc.
- Local Field Office staff
    - Local field staff are those on payroll at Partners field offices, including the Country Director
    - Local consultant based abroad are consultants paid directly by the field office
    - All other local travelers
- US based/Other
    - Including but not limited to volunteers, board members, etc.

14.4 Travel Advances

Partners Guyana's policy is to only to make payments after goods and services have been supplied and conditions for payment met, therefore NO advances will be made for staff going on work related travel.

14.5 Allowable and Unallowable Expenses (Applicable to All)

The following allowable and unallowable expenses apply to all Partners Guyana travelers regardless of their relationship or the location of their base.

Partners Guyana has a travel policy that provides a per diem for all Meals & Incidental Expenses (M&IE), while all other miscellaneous travel expenses, lodging, rental cars, personal vehicles, airfare and train costs are reimbursed based upon actual expenses incurred. Allowable expenses are also limited to the conditions established on grants and agreements with funding agencies sponsoring the trip.

Furthermore, only allowable expenses are reimbursable under the category other miscellaneous travel expenses, lodging, rental cars, personal vehicles, airfare and trains. No later than 30 days following the final day of a trip, an Expense Reimbursement Report should be prepared and submitted to the traveler's FO Finance Department. Partners Guyana will not accept reimbursement requests made after 60 days unless approved by Senior Management at HQ. All travelers requesting an exception must make their requests in writing with a valid reason for the delay.

14.5.1 Lodging – Reimbursable Based

Lodging is defined as room charges and taxes. For reimbursement purposes, a receipt must be provided. These charges cannot include room service fees, upgrade fees, mini bar tabs, entertainment fees, etc. All of these other expenditures must be paid by the traveler using their personal or per diem funds and excluded from their lodging bill.

Partners Guyana will recognize and reimburse lodging costs based on actual expenses, but the USG ceiling rates shall be a guide to appropriate expenditures per country and must not be exceeded. Exceptions above the maximum rate can be approved by the CFO or CEO. A list of USG guidance is provided below:

- General Services Administration (GSA) establishes per diem rates for destinations within the lower 48 Continental United States (CONUS).
- The Department of Defense (DOD) establishes non-foreign rates which includes Alaska, Hawaii, and all U.S. Territories (Non-CONUS).
- The State Department establishes all foreign rates which are specific to major cities.

14.5.2 Rental Cars – Reimbursable Based

The cost of rental cars including rental car insurance is allowed only if the nature of the trip or the location of business to be visited is such, that use of field transport or local transportation is unavailable, impractical or unsafe, as determined by the traveler's supervisor. If deemed necessary and approved as part of the TA process, Partners Guyana will recognize and reimburse rental car costs based on actual expenses. Prior to reimbursement, the FO Finance Department will need to check that the TA includes an explanation (specific uses) as to why a car rental was necessary.

Note, Partners Guyana does not carry a blanket collision damage waiver policy nor is the traveler covered with liability insurance if collision with the rental vehicle were to occur. Partners Guyana recommends the purchase of collision and liability insurance each time a car is rented.

14.5.3 Use of Personal Vehicle – Reimbursable Based

The use of a personal vehicle while on travel within Guyana is permitted in lieu of airline transportation if approved by the supervisor. The traveler will be reimbursed for gas mileage in accordance with the IRS standard mileage rate. The current mileage reimbursement is USD $0.575 cent per mile driven for business purposes https://www.irs.gov/newsroom/irs-issues-standard-mileage-rates-for-2020.

14.5.4 Tolls, Parking, Etc. – Reimbursable Based

For business travel, if renting a car, using a personal vehicle or using a Partners Guyana's program vehicle, Partners Guyana will reimburse based on actual costs for all tolls, parking and other costs associated to the use of the vehicle. These types of expenditures are reimbursed based on actual charges incurred and a receipt must be provided for expenses over USD $25.

14.5.5 Airfare and Trains – Reimbursable Based

Partners Guyana will reimburse or purchase on behalf of all approved travelers all necessary airfare and train tickets. For reimbursement purposes, a receipt and boarding pass must be provided for all airfare and train tickets. Please note below the additional restrictions related to airfare purchases.

14.5.5.1 Seat Upgrades

Only coach class or promotional fares will be paid by Partners Guyana. Business and first class are considered seat upgrades and must follow the below protocol; otherwise, this will not be covered by Partners Guyana. While seat upgrades are not to be expected, there are some circumstances when the traveler could be authorized to travel Business class:

- When no space is available in coach-class accommodation and the flight must be taken;

- When use of business class is necessary to accommodate traveler disability or a special need; or
- When the cost is the same or the traveler pays for the difference in cost between coach and the upgrade.

With the exception of no-cost upgrades, or the traveler pays for the difference in cost without Partners Guyana's funding, all seat upgrades will need to be approved in advance with the FO Director and must include a written justification as to why the upgrade is necessary.

14.5.5.2 Fly America Act

All US government-funded travel will comply with the Fly America Act, which requires that all travel and shipments must be made on U.S. flag carriers to the extent services by such carriers is available. Use of a Fly America compliant carrier is required regardless of whether a foreign carrier can provide the service at a comparable or lower cost, or whether a foreign carrier is preferred due to convenience. The rules generally provide for a limited number of exceptions; however, a U.S. carrier must be used for any travel: 1) within the U.S., or 2) between the U.S. and the last destination point that is served by a U.S. carrier for that particular routing. Exceptions to the Fly America Act can only be approved by Partners CFO at HQ. The exceptions are as listed below:

1. If a U.S. flag air carrier offers nonstop or direct service (no aircraft change) from your origin to your destination, you must use the U.S. flag air carrier service unless such use would extend your travel time, including delay at origin, by 24 hours or more.
2. If a U.S. flag air carrier does not offer nonstop or direct service (no aircraft change) between your origin and your destination, you must use a U.S. flag air carrier on every portion of the route where it provides service unless, when compared to using a foreign air carrier, such use would:
    - Increase the number of aircraft changes you must make outside of the U.S. by 2 or more; or
    - Extend your travel time by at least 6 hours or more; or
    - Require a connecting time of 4 hours or more at an overseas interchange point.

For a flight to be in compliance with the Fly America Act, the code of a U.S. flag air carrier must be noted as part of the flight number on the airline ticket, flight coupon (boarding pass), or passenger receipt. Each airline has a two-letter alpha code. From this list, you will be able to compare airline codes on the ticket with those on the list and thereby be able to ascertain whether or not the flight is on a US Flag air carrier. In order to ensure that the flight is Fly America Act compliant all travel should be booked through the designated travel agent/agency.

Many of the U.S. flag air carriers are listed below:

- AirTran Airways (FL)
- Alaska Airlines (AS)
- American Airlines (AA)
- Continental Airlines (CO)
- Delta Airlines (DL)
- Frontier Airlines (F9)
- Hawaiian Airlines (HA)
- JetBlue Airways (B6)
- Midwest Express (YX)
- Southwest Airlines (WN)
- Spirit Airlines (NK)
- United Airlines (UA)
- US Airways (US)

14.5.6 Meals & Incidentals (M&IE) – Per Diem Based

Per diem means the amount of money that Partners Guyana gives to the employee for an official trip out of his / her office to cover food and other expenses in accordance with current rates. Partners Guyana includes the cost of all meals and incidentals under a flat rate per diem provided to the traveler and will NOT reimburse based on actual expenditures. Partial per diem will be provided when one or more of the meals is provided by someone other than the traveler.

For the appropriate amount of the per diem, please reference Section 14.6 Per Diem for M&IE to determine correct per diem based on the traveler type.

14.5.7 All Other Miscellaneous Travel Expenses (MTE) – Reimbursable Based

All other miscellaneous travel expenses (MTE) are additional expenses and paid as necessary and charged to the POA credit card or reimbursed based on the actual costs incurred. All MTE expenses over USD $25 must be supported by receipts/stubs/invoices as part of the expense report in order to be reimbursed. MTE includes but is not limited to the following:

- All ground transportation fees (buses, taxis, etc.) between place of lodging or business and places off site to obtain meals, meetings, site visits, etc.
- Visas
- Room cleaning cost: Where an apartment is taken in lieu of hotel accommodations, the traveler may contract, however this must come from the incidental travel expense part of the per diem
- Immunizations and medications on travel
- Reproduction of materials
- Telephone calls and other communication costs that are reasonable and necessary for work-related communications
- Bank fees on exchanges currencies
- Purchase of clothing (in the event that baggage is lost, and clothing must be purchased in order to keep with meeting schedules)

14.5.8 Unallowable Expenses and Reimbursement Limitations

Partners Guyana will not reimburse or cover charges for the below prohibited items. Please note these lists are not inclusive and Partners Guyana reserves the right to refuse payment of any authorized or expense deemed unallowable.

14.5.8.1 Alcohol Purchases

Alcohol purchases may not be made with Partners Guyana's funds while on Partners Guyana travel.

14.5.8.2 Other Unallowable Expenses

Partners Guyana's unallowable expenses include but are not limited to:

- Additional travel insurance, travel accident insurance or trip cancelation premiums
- Non-essential upgrades or packages
- Additional expenses associated with the cost of first or business class airfare, unless it falls into the exception categories listed above
- Childcare and babysitting expenses
- Costs incurred by your failure to cancel transportation or hotel reservations

- Costs incurred by your spouse or other dependents traveling with you, unless spouse or dependents is also on a Partners assignment
- Gasoline expenses when the automobile mileage reimbursement rate is claimed
- Hair styling and haircut expenses
- Spa, nails or other treatments
- Entertainment or tour expenses, unless activity is required by Partners Guyana trip
- Kennel/boarding expenses for pets
- Costs incurred for speeding tickets, etc. when renting or driving any vehicle for Partners Guyana use
- Other expenses not directly related to the business purpose of the travel assignment

For a complete list of unallowable expenses for USG funds, please reference 2 CFR Part 200: Unallowable Costs (Annex K) or OMB Circular A-133, which includes any potential exceptions to the above unallowable expenses.

14.6 Per Diem for M&IE

Partners Guyana has a travel policy that provides a per diem for all expenses related to meals and incidental expenses (M&IE). For the appropriate amount of per diem, please determine the traveler type. All travelers will fall into one of the three categories, as defined in Section 14.3 Traveler Definitions.

14.6.1 M&IE Rates

All Partners Guyana's M&IE per diem rates are based on a percentage of the government per diems allowed per city and/or country, as defined herein and below. Depending on the destination, travelers should utilize the General Service Administration rates for travel within the continental US, the Department of Defense rates for travel to Alaska, Hawaii, and other US territories, and the State Department for all foreign travel. The websites to obtain the rates are listed below:

- General Services Administration (GSA) establishes per diem rates for destinations within the lower 48 Continental United States (CONUS).

- The Department of Defense (DOD) establishes non-foreign rates which includes Alaska, Hawaii, and all U.S. Territories (Non-CONUS).
- The State Department establishes all foreign rates which are specific to major cities.

Per diems are driven based on the approved TA and include any travel outside of HQ or the respective Country Field Office with travel duration of four (4) hours or longer, regardless of the destination or transportation mode. Exceptions to this must be approved by the CEO or CFO.

14.6.2 M&IE Meal Breakdown

M&IE is intended to cover the costs of meals and incidentals during each day of work-related travel. For first and last days of travel (travel days), if the itinerary requires the traveler to start their travel day from their home-of-record (or work-related destination) before breakfast and return to their work-related destination (or home-of-record) after dinner, then the full per diem can be recorded and documented in the expense report. Specifically, if departure from home on first day of travel is before 6AM or arrival to home on last day of travel is after 7PM, then full per diem may be applied for a travel day. Otherwise, travel day rates will be determined as defined in Section 14.6.4 Per Diem M&IE – Local Field Office Staff. The travel day rate utilized should be as follows: On first day of travel, utilize the destination city; on the last day of travel, utilize the departure city. For example, if the traveler leaves home-of-record and travels to San Diego on day one, and returns back home from San Diego on day three, during both travel days, the per diem should be calculated based on the San Diego rate.

If the daily M&IE rate excludes one or more of the meals, these are to be reduced at the following rates:

- Breakfast: 16% of daily calculated M&IE rate
- Lunch: 24% of daily calculated M&IE rate
- Dinner: 40% of daily calculated M&IE rate

Note that incidentals are calculated at 20% of the total daily rate and excluded from these meal rates; i.e., the sum of incidentals and the three meals is equal to 100% of the daily M&IE.

See examples in Annex L.

14.6.3 M&IE Allowable Costs

The M&IE portion is intended to substantially cover the costs as described below.

1. The meals allowance portion is intended to include the cost of breakfast, lunch, and dinner while on travel, and is incorporated as part of the per diem.
2. Incidental travel expense portion is intended to include but are not limited to:
    a. Fees and tips to waiters, porters, baggage handlers, bellhops, hotel servants, dining room stewards, and similar employees
    b. Laundry, dry cleaning, and pressing of clothing
    c. Room cleaning tips
    d. All other incidental travel expenses as defined by Chapter 300, Part 300-3, in the Federal Travel Regulation (www.gsa.gov/ftr), under Per Diem Allowance.

US Based/HQ and local field office staff are not permitted to charge a corporate card for meals covered by their per diem, for themselves or any other individual receiving a Partners Guyana's per diem. As all Partners Guyana travelers receive some form of per diem, their costs should be paid for separately with per diem or personal funds. However, if the meal for the group is charged on a corporate card, this meal must be deducted from the daily per diem rate, at the rate defined above (in Section 14.6.2 M&IE Meal Breakdown) for the specified meal.

If US Based/HQ or local field office staff need to cover the cost for meal invitees (e.g. donors, etc.), they may use a corporate card to pay for the bill; however, they should deduct their meal and the meals of any other Partners Guyana's per diem recipients from the bill and pay the remaining balance on the corporate card, if possible. Alternatively, they may choose to deduct the meal from the daily per diem rate received, as per the rate defined above for the specified meal. Similarly, when paying with personal credit card or cash (intending to be reimbursed), the US Based/HQ or local field office staff will only receive reimbursement for the portion of the bill that does not include meals for Partners Guyana's per diem recipients. If for some reason the bill cannot be split, and there is no other option than to pay on a corporate card, the US Based/HQ or local field office staff member must split out the portion of the bill when coding their credit card statement between personal charges and actual business expenses. The US Based/HQ or local field office staff member will be liable to pay Partners Guyana back for their part of the meal and for the meals of any other Partners Guyana per diem recipient charged to their Partners Guyana's corporate credit card if they received an advance for per diem; otherwise, this should be deducted from the expense report when requesting travel per diem after the trip.

14.6.3.1 M&IE Weekend Travel
Should a traveler remain away from home on business over a weekend, the per diem will be allowed, assuming that the traveler is required to be away from home over the weekend for business purposes.

14.6.4 Per Diem M&IE – Local Field Office Staff
This portion of the per diem policy guidelines applies to all local field office staff, local consultants and all other local travelers based outside of the US. This policy includes the Country Director. For all full days on travel, **Local Field Office staff will receive 35% for all domestic travel and 50% for all international travel,** of the government per diem rate for the particular city (or region for travel where not all specific cities are listed).

On the first and last day of travel, in alignment with the USG guidelines, the maximum M&IE per diem will be based on **26.25% for domestic travel and 37.5% for international travel** of the government per diem rate for the particular city (or region for travel where not all specific cities are listed). See exceptions to this in Section 14.6.2 M&IE Meal Breakdown above.

If local field office staff are taking personal vacation time either before or after the Partners Guyana business travel, they will not receive Partners Guyana per diem those days. The local field office staff will receive the first and last travel day in accordance with the guidelines listed above, as these local field office staff local field office staff would have had to travel to or from the office or place of residency whether or not they were on personal travel after or prior to the trip.

14.6.5 Payment of Per Diems

Regardless of the traveler, per diems will only be paid upon the Finance Office's receipt of an approved TA. The approved TA and itinerary will be the supporting documentation and authorization for the issuance of the per diem. No receipts will be required for per diem payment, except as defined in this policy.

All per diem payments should be made within 30 days from the end date of travel. Partners Guyana will not accept per diem payment requests made after 60 days unless approved by Partners HQ. All travelers requesting an exception must make their requests for exceptions in writing (e.g. memorandum addressed to the FO Finance Office) with a valid reason for the delay.

It is the traveler's responsibility to utilize their per diem to cover all their meals and incidentals. Unless approved by the CEO, no additional M&IE will be provided. The traveler does not need to reimburse the organization if they do not spend all their daily M&IE.

14.6.5.1 Per Diem Payment for Local Field Office Staff

Local field office staff including the Country Director and all other local travelers outside of the US will be issued their per diem upon submission of the approved travel authorization via the Replicon platform. The per diem request with the attached travel authorization as the supporting documentation will need to be submitted by each employee in Replicon, and then approved by the appropriate supervisor in Replicon. Once completed, this information will be submitted to the FO Finance Department for direct payment into the employee's bank account within 30 days.

14.7 Reimbursement Requests (Non-Per Diem Items)

Allowable expenses that may be submitted for reimbursement as described above (lodging, rental cars, personal vehicles, airfare and trains) are all reasonable costs which are essential and directly related to the objectives of the grant and/or the main purpose of the trip.

14.7.1 Expense Reports for Reimbursement – Local Field Office Staff

No later than 30 days following the final day of a trip as necessary (in which purchases are not made on behalf of the traveler in advance), a reimbursement request should be prepared and submitted to the FO Finance Department The method for requesting reimbursement for local field office staff will be done via the Replicon application. This report submitted in Replicon should include the following:

- A fully executed Travel Authorization/Travel Itinerary
- Replicon Expense Report which includes all proper documentation and copies of receipts attached for all items over USD $25.
    - Please note that a bank or credit card statement is not sufficient documentation for a receipt. Where sufficient documentation has not been obtained, an affidavit will need to be filled out confirming the expenses were for business purposes and that the expenses did not include any alcohol. A copy of an appropriate affidavit is found in Annex M.
- Provide evidence of the exchange rate during the period of travel (a hotel or bank receipt showing a conversion of currency may be a convenient way of satisfying this requirement.)
    - The following sites are also recommended to utilize for obtaining the exchange rate:
        - Oanda: https://www1.oanda.com/currency/converter/
        - XE: https://www.xe.com/

14.8 Personal Travel During Business Trips

If, for personal reasons, the traveler wishes to go to places other than those on the authorized Partners Guyana itinerary, he/she may book and must pay for those reservations and additional costs. The traveler should also notify the FO Finance Department in writing that they are booking personal travel/personal portion of the trip. If the personal travel is booked on the same ticket as the Partners Guyana authorized trip, the traveler will be responsible for covering their personal travel within 30 days of the booking. If the flight cost is a cheaper ticket price including personal days on the beginning or end of the trip, the traveler does not need to reimburse any money. Travelers are only responsible for paying the difference of the ticket price. For example, travel dates for business ticket cost equals $500, travel dates including a personal portion of the trip equals $600, the staff must reimburse Partners Guyana the $100 difference between business ticket cost and personal portion of the trip. Appropriate documentation showing the additional costs must be kept on file for audit purposes.

14.9 Use of Partners Guyana's Vehicles

It should be noted that only authorized employees of Partners Guyana and Partners HQ are eligible to drive company vehicles. "Vehicles" are defined as cars, trucks, motorcycles or any other motorized vehicle owned by Partners Guyana. Partners Guyana provides vehicles for business use to allow employees to drive on designated business assignments. All employees using company vehicles must following the below requirements:

- Any driver of Partners Guyana vehicles must ensure that the equipment does not experience any deterioration either by his/her direct negligence or by the fault of a third party. Therefore, the employee will personally ensure the proper physical maintenance of the vehicle he/she is responsible for by checking the daily cleanliness and routine parameters, which the employee will note before each use.
- Only authorized employees of Partners Guyana are eligible to drive company vehicles.
- All authorized drivers must be 25 years or older.
- The keys should be held by authorized employees of Partners Guyana who are eligible to drive company vehicles. When the vehicle is not in use or on business assignment, the keys should be returned to the FO Director.

- All individuals driving Partners Guyana's vehicles, must always have a valid driver license on them while utilizing the company vehicle.
- Company vehicles are **only** to be used for business travel.
- On occasion supervisors must check the employee's driving record to ensure that the employee's record is clean and without motorized vehicle violations.
- Employees approved to drive on company business are required to inform their supervisor of any changes that may affect either their legal or physical ability to drive.
- Employees holding jobs requiring regular driving for business as an essential job function must, as a condition of employment, be able to meet the driver approval standards of this policy at all times.
- Employees should maintain the security of the vehicle and its contents, including not leaving personal items (including those of any passengers) in the vehicle at any time while unattended.
- Drivers must always drive safely and responsibly and follow all traffic regulations, including the speed limit and pay special attention to pedestrians and cyclists.
- Drivers must be mindful of the weather, and avoid driving during severe weather conditions, when feasible.
- Use of handheld cell phones (including texting) while behind the wheel of a moving vehicle being used on company business is strictly prohibited.
- Employees are responsible for any driving infractions or fines as a result of their driving.
- Nonemployees and nonbusiness passengers (i.e., family and friends) are prohibited from riding in company vehicles.
- Current registration and proof of insurance must be present in vehicle.
- Vehicle doors must be locked when in motion.
- Company vehicles shall always be secured when not in transit by being locked, keys removed, and alarms activated if so equipped.

- Employees must report any accident, theft or malicious damage involving a company vehicle to the FO Director and Partners HQ, regardless of the extent of damage or lack of injuries. Such reports must be made as soon as possible but no later than 6 hours after the incident unless employee is medically incapable of reporting.
- Employees are expected to cooperate fully with authorities in the event of an accident. However, employees should make no voluntary statement other than in reply to questions of investigating officers.
- Smoking is prohibited in all company vehicles.
- Seatbelts must always be worn by all passengers in the vehicle.
- Employees are not permitted, under any circumstances, to operate a company vehicle with any physical or mental impairment that causes the employee to be unable to drive safely. Furthermore, employees shall not operate any company vehicle while using or consuming alcohol, illegal drugs or prescription medications that may affect their ability to drive.
- The company driver is responsible for ensuring all necessary precautions are always taken to prevent damage and theft of the company vehicle and/or its contents. Whenever an employee leaves a company vehicle, the following must be done:
    - Roll up all windows
    - Lock all doors
    - Do not leave merchandise and equipment in open view inside a car, which may tempt a break-in. Remove all valuable items or lock them inside the trunk and out of sight when the vehicle is left unattended.
- Employees must take precautions to safeguard the vehicle and its contents. To the extent possible, employees must select off street parking, secure parking garages, or a lighted area close to a business or hotel entrance where normal police surveillance or security protection exists. If an employee is keeping a vehicle overnight in Georgetown and a secure location is not possible, then the employee must return the vehicle to Partners Guyana's office location.

Any violation of the above requirements will result in disciplinary action, up to and including termination.

14.9.1 Vehicle Driving Restrictions

Any employee who has a "major violation" in the last five years will not be eligible to drive company vehicles, unless special authorization is given by Partners HQ. Major violations include but are not limited to:

- Driving under the influence of drugs/alcohol;
- Failure to report an accident;
- Reckless driving;
- Making a false accident report;
- Driving while license is suspended or revoked; or
- Attempting to evade a police officer.

14.9.2 Vehicle Travel Restrictions

Vehicles within cities must consider the current security situations in the country. It is recommended to check with the FO Director for the restrictions in place and adhered to U.S. Embassy restrictions for travel including restrictions on departure times.

14.9.3 Vehicle Logs

Before each use, employees must complete a basic vehicle check before and update the log. Drivers must confirm that the following parts and components are in good working order: brakes, steering mechanism, horn, windshield wipers/washers, rear-vision mirrors, lights, and tires. Vehicles found to be in an unsafe condition may not be operated for until properly repaired.

After the basic check is completed, employees will need to report any damages and/or issues with the vehicle on the approved tracking sheet. A mileage log must be maintained for each vehicle, identifying the date and purpose of each trip and the beginning and ending odometer readings. Upon finalizing the use of the vehicle at the end of each day, the employee will need to update the log and report any damages and/or issues with the vehicle. If an employee fails to update the mileage log and perform the vehicle check, they may face disciplinary action.

14.9.4 Reporting Vehicle Accidents

In case of an accident, the employee should take the following steps:

- If anyone is hurt, call for medical assistance;
- Contact the FO Director and Partners HQ immediately;
- Report the incident immediately to the local police and obtain a copy of the police report;
- Get the below information if possible:
  - Nature and extent of the damage to vehicles and other property;
  - Name and address of the legal owner of the other vehicle or vehicles, if any.
  - Name, address, driver's license number, and date of birth of the driver of the other vehicle or vehicles, if any;
  - License number, make and model of the other vehicle or vehicles, if any;
  - Name of the insurance company of any other driver or drivers, policy number and expiration date, and policy holder's name and address;
  - Time, place and date of the accident;
  - Names and addresses of anyone injured and description of injuries; and
  - Names and addresses of any passengers and other witnesses.
- Exchange vehicle identification, insurance company name and policy numbers with the other driver (if applicable);
- Do not admit negligence or liability. Give no information except as required by law enforcement officers;
- Do not attempt settlement, regardless of how minor;
- Take a photograph of the scene of accident;
- Complete the employee accident report found in Annex G.

After the accident, the employee should follow legal guidelines for exchanging information with other drivers and report the accident to local police. Employees cannot guarantee payment to other parties without Partners Guyana's authorization.

The employee will be responsible for completing the Employee Accident Report Form found in Annex G. Such reports must be made as soon as possible but no later than 6 hours after the incident unless employee is medically incapable of reporting. All photos, police reports, employee accident reports, and other information relating to the incident must be retained and a copy sent to Partners HQ. The FO Director will work with Partners HQ to contact the insurance provider and file claim, as necessary.

14.9.5 Vehicle Repairs

For all vehicle repairs, employees must review the warranty on the vehicle when applicable. The warranty must be reviewed to ensure that the repairs are not covered under the existing warranty and/or that the repairs are done at the necessary shop which are authorized outlets for service. Additionally, the driver must check that the original parts of the vehicle are not replaced used parts, a dishonest practice quite common for radiators, batteries, lamps etc. in some places.

14.9.5.1 Normal Vehicle Maintenance

The driver will respect the normal maintenance schedule of the vehicle, usually based on the mileage of the car or the number of months of use if it occurs before. The objective is to maintain company vehicles in a safe and operating condition by using the most economical, reliable, and up-to-date procedures and technologies available, all in accordance with the original manufacturer's recommendations. Employees who are having vehicles serviced for normal maintenance, should follow all necessary procurement standards and recommended maintenance timelines.

14.9.5.2 Major Vehicle Repairs

Major vehicle repairs are those valued at USD $500 and above. For all major repairs, the employee will be required to obtain three (3) quotes from a pool of qualified service providers. The FO Director in coordinator with Partners HQ will review the quotes and select the best provider. The overall process and selection of the provider will be documented in accordance with the normal procurement standards in Section 13. If the major repair pertains to an accident report and an insurance claim is filed, then Partners HQ in coordination with the FO Director will work with the insurance agent to cover the cost less any deductible.

14.9.6 Vehicle Insurance and Registration

Under Partners HQ's vehicle insurance policy, it provides protection to authorized drivers of company vehicles while on official business. The insurance policy covers collision, fire, theft and liability and includes a deductible. If the accident is due to driver negligence, the insurance claim may be denied, and Partners Guyana will be responsible for all costs associated with the incident.

All Partners Guyana's vehicle must be registered in Guyana with the appropriate authorities. Any vehicle that is not properly registered cannot be used for business, until the registration is updated. Copies of current vehicle registration information must always be retained in the glovebox of the vehicle, and a second copy filed with the FO Finance Manager.

Annex A

Master Equipment & Supply Listing

PARTNERS *of the* AMERICAS
Connect • Serve • Change Lives

Project Number:

Preparer: (Name & Signature) **Date:**

Approver: (Name & Signature) **Date:**

Equipment or Supplies Description	Acquisition Date	Model #	Serial #	Vendor	Purchase Price	Location	Condition	Current price	Notes

Annex B

Petty Cash Count

Partners of the Americas - USAID649 Guyana Field Office - Petty Cash Count				
	Petty Cash Count on		7-Jan-20	
Bank Notes	G$ 1,000		**GYD 0.00**	
	G$ 500		**GYD 0.00**	
	G$ 100		**GYD 0.00**	
	G$ 20		**GYD 0.00**	
	G$ 10		**GYD 0.00**	
	G$ 5		**GYD 0.00**	
	G$ 1		**GYD 0.00**	
Coins	Coins Total		**GYD 0.00**	
	Total Cash On Hand		**GYD 0.00**	
By signing below I certify that I have conducted a cash count and verified Petty Cash Float in the presence of the petty cash float holder on:				***1/7/2020***
Prepared by:	**Terrence McKenzie**	Signature:		
Title of Preparer:	**Administrative Assistant & Accountant**		Date:	1/7/2020
Certified by:	**Kelvin Craig**	Signature:		
Title of Certifier:	**Country Director**		Date:	1/7/2020
Remarks:				

Annex C

Field Expenditure Report and Certification

Partners of the Americas - USAID649 Guyana Field Office

Partners of the Americas - USAID649 Guyana Field Office

Month ending	9/30/2018
Country	Guyana

Choose from drop down list

ate	Ref or CK#	Payee	*Budget Description	*Activity Code	Amount (Guyanaese Dollar)	Exchange Rate 210.0000	Amount (USD)	*Object Code	Description of Expense	Country	Office	*Subcont.
			Supplies (All Equipment & Supplies below $5,000 USD in Value)	SUPPLIES	GYD 400.00	210.0000	$ 1.90	7455		GU	0	

Partners of the Americas
General Information & Certifications

Name of the Country office	**Guyana Field Office**
Project Code:	***USAID649***
Project Name:	***John Ogonowsky Farmer to Farmer Program (FTF) 2019-2023***
Project Start Date:	**30-Sep-18**
Project End Date:	**31-Aug-23**
Report Date:	**01-Aug-19**
Total Months for the Project:	**60 Months**
Remaining Months for the Project:	**50 Months**
Remaining Months for the Project:	**83.02%**

Certification of Expenses:

1. The undersigned hereby certifies (1) the fiscal report & attachments have been prepared from the books & records of the field office in accordance with the terms of the grant award, and to the best of my knowledge and belief, that they are correct, that the sum claimed under this award is proper and that all the costs of the field office performance (except as herewith reported in writing has been accrued or paid or will be paid currently to the award when due in the ordinary course of business.)

2. That the work reflected by the costs above have been performed, that the quantities and amounts involved are consistent with the requirements of the award.

3. That all required approvals have been obtained and appropriate refund to Partners of the Americas will be made upon request in the event of disallowance of costs not reimbursable under the term of this award.

4. By signing this report, I certify that the expenses contained in the present report for month of __XXXXX____ equivalent to US dollars __XXXXXX___ were incurred by the field office, and are related to activities carried out by the project. I certify to the best of my knowledge and belief that the report is true, complete, and accurate, and that the expenditures and disbursements are for the purposes and objectives set forth in the terms and conditions of the USAID Award. I am aware that any false, fictitious, or fraudulent information, or the omission of any material fact, may subject me to criminal, civil or administrative penalties for fraud, false statements, false claims or otherwise. I understand that if the expenses contained herein are questioned or not approved by Partners CFO or by USAID, I will provide full cooperation to all the involved parties to complete such review, audit or investigation.

Name of Certifier: ______________________________

Signature: ______________________________

Bank Reconciliation

PARTNERS of the AMERICAS
Connect • Serve • Change Lives

USAID649 - Guyana
Bank Reconcilation
Bank Account: XXXXX

Month and Year:		**Aug-19**	
Exchange Rate for the Month GYD to USD		210.00	
According to the Bank			
Balance as end of:	*August-19*		GYD 0.00
Plus:			
Deposits in Transit			GYD 0.00
Less:			
Check in Transit			GYD 0.00

Number of Check	Details of Expense	Date	Amount
			GYD 0.00
			GYD 0.00
			GYD 0.00
			GYD 0.00
			GYD 0.00
			GYD 0.00

Balance According to the Bank:	**August-19**	GYD 0.00
Exchange Rate Applied GYD to USD		210.00
USD Balance According to the Books end of:	**August-19**	$ -

According to the Books		
Balance as Beginning of:	*August-19*	GYD 0.00
Plus:		
Deposits for the Month		GYD 0.00
Less:		
Check Written in Current Month		GYD 0.00
GYD Balance According to the Books end of:	**August-19**	GYD 0.00
Exchange Rate Applied GYD to USD		210.00
USD Balance According to the Books end of:	**August-19**	$ -
Difference of Bank and Book Balance as end of:	**August-19**	$ -

By signing this report, I certify that the expenses contained in the present report for month of __XXXXX____ equivalent to US dollars __XXXXXX___ were incurred by the entity, and are related to activities carried out by the project. I certify to the best of my knowledge and belief that the report is true, complete, and accurate, and that the expenditures and disbursements are for the purposes and objectives set forth in the terms and conditions of the USAID Award. I am aware that any false, fictitious, or fraudulent information, or the omission of any material fact, may subject me to criminal, civil or administrative penalties for fraud, false statements, false claims or otherwise. I understand that if the expenses contained herein are questioned or not approved by Partners CFO or by USAID, I will provide full cooperation to all the involved parties to complete such review, audit or investigation.

Prepared By: ______________________ ________
Finance-Administrative Director Date

Approved By: ______________________ ________
Project Director Date

Annex D

Cash Flow Request

PARTNERS *of the* AMERICAS
Connect • Serve • Change Lives

Partners of the Americas

CASH FLOW REQUEST for Jan-20

Office:	Guyana	*Currency:*	GYD	*Date Requested:*	1/7/2020
Program/Grant #:	USAID649				

Exchange Rate of GYD to USD		210.00
		Amount
Bank Balance as of 1/7/2020	**GYD**	**290,989.28**
Current Bank Balance in USD	**$**	**1,385.66**
Petty Cash Balance as of 1/7/2020	**GYD**	**45,000.00**
Current Petty Cash in USD	**$**	**214.29**
Last Cash Flow Request in USD	**$**	**5,800.00**
Are these funds in your bank account as 1/7/2020 ?		**Yes**
Total Cash on Hand	**$**	**1,599.95**
Projection for Unpaid Obligations this Month in USD	**$**	**5,291.79**
Total Projections for Next Month in USD (Rounded Numbers) Jan-20	**$**	**18,295.15**
Local Personnel (Includes Country Director & All Field Staff)	$	4,000.00
Local Fringe (Includes SS, aguinaldo, Med. Life & Severance)	$	-
Local Consultants (Short Term Contracts)	$	-
Supplies (All Equipment & Supplies below $5,000 USD in Value)	$	-
Meetings and Events	$	-
Staff Travel (transportation, hotels, per diems, airfare, etc. when not with FTF Volunteer)	$	-
Communication	$	-
Office Rent & Utilities	$	-
Volunteer Travel-Related Costs (Includes cost of local staff travel when on travel with FTF	$	-
Bank Fees & Misc. Service Charges/Interest	$	-
Total	**$**	**4,000.00**
Necessary Funding for Next Month	**$**	**7,691.84**
Total Cash Flow Request	**$**	**7,691.84**

By signing below I certify that I have conducted a petty cash count and verified that the amount above is accurate and available.

Prepared by:	**Terrence McKenzie**	Signature:	
Title of Preparer:	**Administrative Assistant & Accountant**	Date:	1/7/2020
Certified by:	**Kelvin Craig**	Signature:	
Title of Certifier:	**Country Director**	Date:	1/7/2020

Annex E

Petty Cash Certification

Date

Name of Country Director/Chief of Party
Country Director/Chief of Party

Dear **Name of Country Director/Chief of Party**:

<u>Re: CERTIFICATE OF PETTY CASH FLOAT HELD</u>

TOTAL OF PETTY CASH FLOAT: ______________________

LESS TOTAL PETTY CASH VOUCHERS: ______________________

EQUALS TOTAL CASH ON HAND: ______________________

I certify that I have conducted a cash count on _____________ (date) and verified Petty Cash Float in the presence of the petty cash float holder.

PETTY CASH VERIFIER: ___________________ Name

___________________Signature

PETTY CASH FLOAT HOLDER: ___________________ Name

___________________ Signature

Annex F

Harassment Complaint Form

The information you provide below is considered sensitive and will be shared only with those who are considered essential to the investigation and disposition of this complaint. Do not feel limited by the space provided in this form – you are encouraged to attach additional pages if you believe it will assist in the investigation.

If you are more comfortable with verbally relaying your report, your supervisor or any member of management you've discussed your complaint with can complete the form on your behalf. However, you must sign the last page.

Complainant Name:	
Position:	
Department:	
Supervisor:	
1. Describe the alleged harassment incident(s).	
2. Who was responsible for the alleged harassment incident(s)?	

3. Identify any witnesses to the alleged harassment incident(s).
4. Where did the alleged harassment incident(s) take place?
5. List the date(s) and time(s) that the alleged harassment incident(s) occurred.
6. Have you reported this incident to anyone else? If so, whom?

Employee Signature	***Date***
Signature of Person Completing Form (if not employee):	***Date***
Name of Person Completing Form (if not employee):	

Partners Guyana is an equal opportunity employer. It is Partners Guyana's policy that all employees have a right to work in an environment free of discrimination and harassment based on race, color, sex, religion, ethnic origin, indigenous populations, national extraction, political opinion, disability, sexual orientation, economic status, family responsibilities, pregnancy, marital status, age (except to confirm not employing a minor), national ancestry or social origin, or any other basis protected by local law. Partners Guyana's policy prohibits retaliation against any employee for complaining about discrimination or harassment.

Annex G

Employee Incident Report

<table>
<tr><th colspan="3">A. Injured Employee Data</th></tr>
<tr><td>Employee Name:</td><td>Position:</td><td>Full Name of Witness (If applicable):</td></tr>
<tr><td colspan="3">Work Location:</td></tr>
<tr><td>Date of Accident</td><td>Time of Accident
A.M. ☐
P.M. `☐</td><td>Claim Number (if known)</td></tr>
<tr><td>Phone:</td><td>Other/Cell Number:</td><td>Email:</td></tr>
<tr><td colspan="2">Supervisor</td><td>Supervisor Telephone Number</td></tr>
</table>

Check all that Apply:

Type of Accident/Loss: ( )Injury ( )Vehicle Accident ( )Illness ( )Property Damage ( )Fire

(_)Other-Specify:______

Location of Occurrence: ( )On Premises - Office ( )Off-Premises

Nature of Injury/Illness: (Strain, Laceration, Burn, Fracture, etc.)____________________________

Part(s) of Body: (Back, Finger, Hand, Foot, etc.)_____________________

Date of 1st Medical Treatment:_Time__AM/PM

Employee Sent: ( )Back to Work ( )To Doctor ( )Home ( )To Hospital

If applicable: Estimated Time of Disability:______Days

For Vehicle Accidents Only

Owner: ( ) Partners Guyana ( )Other (Name/Address)_____________

License Plate Number:_______________Year:________

Make/Model:________________

Brief Damage Description:

____
____
____
____

Repair Hours (Estimated)______ Estimated Material Costs $____________

B. Accident Description
Instructions: Obtain written and/or recorded statements from injured employee. What happened? What caused the accident? What were the contributing factors? Reconstruct the sequence of events that led to the injury. Attach additional sheets if necessary. This document becomes an official accounting of the facts surrounding the accident. When documenting the facts, include answers to the following questions:
Where did the accident happen and who was involved? Provide a full description of the surroundings of the location and the individuals involved.
What was happening at the time of the accident and why was it taking place?
What were the events leading up to the accident? Describe the sequence in order and when they took place.
What exactly caused the injury and how did it happen? What were the mechanics, equipment or tools involved?
Describe the injury or injuries incurred. What body part and what kind of injury? (Indicate if no injury occurred.)

If a physical injury was avoided, what could have happened to cause an injury?
7. If damage occurred to employer vehicle, please describe the damage:
8. If damage occurred to employer equipment, please describe the damage:
C. Accident Findings
After review of all facts, what was the hazardous condition, unsafe work practice, or other causal factors (procedure, equipment, people, and environment) that contributed to the accident / injury?

Employee Signature: ____

Date:_________________

Witness Signature (If Applicable):____

Date: __________

Supervisor Signature: ____

Date: _________________

Employee Accident Investigation Report

To Be Conducted by FO Director

For all question below please write one of the following: *(Y for Yes; N for No; NA for Not Applicable)*

I. Environmental Data

Temperature___
Humidity______
Weather______
Wind__
Visibility______
Lighting______
Surface (road, steps, floor, etc.).
____
Condition (smooth, wet, slippery, etc.)
____

Type Surface (wood, asphalt, grass, etc.)
____
Describe Roadway (Curve, uphill, intersection, etc.) _______________
Traffic Control Devices (Y/N):
(1) Present____
(2) Visible____
For ramps, stairs, steps (Y/N):
(1) Present____
(2) Obstructions______

II. Operator/Vehicle (If applicable)

A. Driver Injured________________
B. Passengers Injured ____________
C. Others Injured________________
D. Vehicle Damaged______________
F. Other Vehicle Damaged________

G. Other Property Damaged______________
H. Driver Licensed for Vehicle____________
I. Seat Belts Worn______________________
J. Alcohol/Drugs Involved ______________

III. Equipment/Training Data

A. Safety Equipment Required_______
B. Safety Equipment Available_______
C. Safety Equipment Used___________
D. Experience a Factor______________
E. Instructions Available____________

F. Instructions Written______________
G. Instructions Adequate____________
H. Alcohol/Drugs a Factor___________
I. Adequate Rest for Use____________

Have similar accident occurred before? ____

How many accidents has this employee had in the past 12 months? ____________________________

Of the above accidents how many were preventable? _______________________________________

Once the investigator has completed the questions above and reviewed the incident report, answer the following questions:

In your opinion, what caused the accident?

A. Unsafe Procedure_________________ Was this Preventable _____ or Non-Preventable _____

B. Defective Equipment ______________ Was this Preventable _____ or Non-Preventable _____

C. Horseplay/Misconduct_____________ Was this Preventable _____ or Non-Preventable _____

D. Unauthorized Use ________________ Was this Preventable _____ or Non-Preventable _____

E. Poor Hygiene/Housekeeping _______ Was this Preventable _____ or Non-Preventable _____

F. Lack of Training/Experience ________ Was this Preventable _____ or Non-Preventable _____

D. Corrective Action
What is recommended to prevent this type of accident from occurring again?
List possible factors based on descriptive narrative and information in preceding data fields:
List causes:
Corrective Action Taken/Planned, with dates:

Use Additional Forms and Paper if Required

Investigated by: ____

Investigator Signature: ____

Date: _________________

Reviewed by: ____

Reviewer Signature: ____

Date: _________________

Annex H

Application for Employment

EEO Statement: Partners of the Americas is an equal opportunity employer and will not discriminate against any application for employment on the basis of actual or perceived race, color, religion, national origin, religion, sex (including pregnancy, childbirth, and other pregnancy-related conditions), age (18 and over), marital status (including parenthood), personal appearance, sexual orientation, gender identity or expression, family responsibilities, genetic information, disability, veteran status, matriculation, political affiliation or any other basis prohibited by law.

General Information:

Date:______________________________

Full Name: ____

Current Email Address: ________________________________

Current Address: ____

Day Phone Number: ____________ Evening Phone Number: ____________

____ [ ] Full-Time
Position Desired Salary Desired Earliest Start Date [ ] Part-Time
[ ] Intern

Have you ever applied to Partners of the Americas before? ________

If yes, when: __________________

How did you find out about Partners of the Americas? _______________________________

Are you legally permitted to work in this country? [ ] Yes [ ] No

Have you ever been convicted of a crime other than a minor traffic violation? [ ] Yes [ ] No
If yes, give details on a separate page and attach to the application.

Note: A criminal conviction is not an absolute bar to employment but will be considered in relation to specific job requirements.

Education / Training:

____

High School | City & State | Degree

Did you graduate: [ ] No [ ] Yes

____

College | City & State | Degree

Did you graduate: [ ] No [ ] Yes

____

Graduate/Trade School | City & State | Degree

Did you graduate: [ ] No [ ] Yes

Previous Experience (Start with current or most recent employer):

____

Firm Name | From (Month/Year) | To (Month/Year) | Salary

____

Address (Street, City, State, Zip)

____

Job Title | Supervisor's Name | Phone #

Responsibilities: ____

____

Reason for Leaving: ____

May we contact the above employer? [ ] Yes [ ] No If no, please provide explanation.

____

Firm Name | From (Month/Year) | To (Month/Year) | Salary

____

Address (Street, City, State, Zip)

____

Job Title Supervisor's Name Phone #

Responsibilities: ____

____

Reason for Leaving: ____

May we contact the above employer? [ ] Yes [ ] No If no, please provide explanation.

____

Firm Name From (Month/Year) To (Month/Year) Salary

____

Address (Street, City, State, Zip)

____

Job Title Supervisor's Name Phone #

Responsibilities: ____

____

Reason for Leaving: ____

May we contact the above employer? [ ] Yes [ ] No If no, please provide explanation.

Additional Qualifications:

Please identify any additional knowledge, skills, qualifications or awards that will be helpful to us in considering your application for employment.

____

____

References:

Please provide the names of three professional references, not related to you, who can best provide pertinent information as to your character and capabilities for the position you are applying or being considered for. These individuals are generally your previous supervisors.

Name/Title: **Organization:** **Relationship:**

Email **Telephone #:**

Applicant's Certification:

Applicant's Certification of Truthfulness, Agreement to Background Checks and Understanding of "AT WILL" Employment

I hereby certify that all statements made in this application and in the pre-employment, process are true and correct to the best of my knowledge and belief. I understand and agree that any misrepresentation or omission of facts in my application or in the pre-employment process may result in rejection of my application or termination of my employment.

I understand an employee of Partners of the Americas may make an investigation as to my character and general reputation. I authorize all current and past employers, schools, persons and organizations having relevant information or knowledge to provide it to Partners of the Americas for the use in deciding whether or not to offer me employment. I hereby release Partners of the Americas its representatives and all such employers, schools, persons and organizations from all liability in making or responding to inquiries in connection with my application.

I understand that if an employment relationship is established my employment can be terminated at any time, with or without cause, at the option of either Partners of the Americas or myself. I further understand that nothing contained in this application or in any other oral communication or representation from Partners of the Americas or any Partners of the Americas representative made at any time constitutes a contract, guarantee, promise or any other binding obligation on Partners of the Americas.

Further, if granted a position with Partners of the Americas, I will comply with all of Partners of the America's policies and procedures, a copy of which will be provided on or before my first week of employment.

In signing this form, I certify that I understand all the questions and statements in this application.

Acknowledged:

Signature of Applicant **Date**

Annex I

Performance Evaluation Template

EMPLOYEE PERFORMANCE EVALUATION

EMPLOYEE NAME		REVIEWER NAME	
EMPLOYEE TITLE		REVIEWER TITLE	
DATES OF REVIEW	January 1, 2019 - December 31, 2019	TODAY'S DATE	

CHARACTERISTICS		
QUALITY	**RATING SCALE**	**COMMENTS**
Works to Full Potential (not distracted & able to complete quality work)		
Takes Initiative (doesn't wait to be asked to start doing his/her work)		
Time Management (consistently meets deadlines with quality & accuracy)		
Communication (responds promptly & accurately to requests)		
Accountability (follows policies & procedures)		
Financial Management (accurate & responsibly handling funds)		
Coworker Relations (interacting respectfully & in good behavior with staff)		
Attendance & Punctuality (is on time to work - in the field of office, and has excused absences)		
COUNTRY DIRECTOR TECHNICAL ROLE		
Designed well-written country project strategies		
Identifies local host organizations		

Onboards field staff - review Field Office Manual & POA policies		
Ensures project Scopes of Work meet the country's project strategy		
Oversees in-country travel & logistics for volunteers & staff		
Produces comprehensive & well-written content to POA for reports		
Establishes relationships with hosts, partners, & other stakeholders		
Follows POA's instructions and implements updates		
Successfully supervises field staff & keeps them accountable		
Monitors & evaluates the quality & impact of volunteer assignments		
OVERALL SCORE /80		

GOALS FOR NEXT PERIOD

COMMENTS

EMPLOYEE SIGNATURE		**REVIEWER SIGNATURE**	

DEFINITION OF RATINGS
EXCEPTIONAL (5): Consistently exceeds all relevant performance standards. Provides leadership, fosters teamwork, is highly productive, innovative, responsive and generates top quality work. Active in industry-related professional and/or community groups. **EXCEEDS EXPECTATIONS (4): Consistently meets and often exceeds all relevant performance standards. Shows initiative and versatility, works collaboratively, has strong technical and interpersonal skills or has achieved significant improvement in these areas.** **MEETS EXPECTATIONS (3): Meets all relevant performance standards. Seldom exceeds or falls short of desired results or objectives. Lacks appropriate level of skills or is inexperienced/still learning the scope of the job.** **BELOW EXPECTATIONS (2): Sometimes meets the performance standards. Seldom exceeds and often falls short of desired results. Performance has declined significantly, or employee has not sustained adequate improvement, as required since the last performance review or performance improvement plan.** **NEEDS IMPROVEMENT (1): Consistently falls short of performance standards.**

Salary Increase Form

PARTNERS of the AMERICAS
Connect • Serve • Change Lives

2020 Salary Increase Form

Salary increases are based on performance and available funds. The supervisor may suggest a salary increase for each employee based on the scale below. If deviating from this scale, an explanation must be included. Salary increases are ultimately at the President's discretion.

- Overall score of 4.5 and above **Exemplary** (4-5% increase)
- Overall score of 3.5 and above **Solid Performance** (2-3% increase)
- Overall score of 3.0 and above **Satisfactory** (1-2%)
- Overall score of 3.0 and below* **Needs Improvement** (0-1% increase)

*Supervisor must attach list of deficiencies and necessary corrective actions (performance improvement plan).

Employee Name:

ective Date of Change: 1/1/2020
(Retroactive to this date, if applicable)

Current Salary	
2019 Annual Salary:	$ -
Months Worked in 2019	0.00

#s needed for formulas
$ -

Salary Increase	
***Percentage Increase:**	0.00%
AND/OR	
Flat Increase:	$ -

$ -

*Based on 2019 Employeee Goals & Performance Evaluation

Reasons for Change	
Annual Increase	
Change in Job Description	
Change in Grant or Unit	
Change in Position	
Other (Please specify)	

Total Increase:	**$ -**
2020 Salary:	**$ -**
Per Pay Period:	$ -

Notes *(Attach additional memos and/or documentation, if necessary)*

Supervisor Signature	Date: 01/01/2020	Vice President *(if applicable)*	
Employee Signature	Date 01/01/2020	President Signature	Date 01/01/2020

Annex J

Risk Assessment Templates

Sub-recipient Monitoring Tool- First Time

PARTNERS of the AMERICAS
Connect • Serve • Change Lives

FIRST TIME RISK ASSESSMENT

Sub-Grantee Check List

Name of Project & Grant Number:				
Fixed Obligation Grant/Contract:	Yes or No	**Overall Score**		
Cost Reimbursable Grant/Contract:	Yes or No	0		
Staff Name Completing Form:		High Risk	Medium Risk	Low Risk
Date Completed:		361-530	202-360	0-201

Grading Legend:

Low Risk	Medium Risk	High Risk
0-3	4 - 6	7 - 10

No.	Description		Review Areas/ Action Required	Answers to Questions	Rating Risk
1	**Organization and Administration**				
	1.1	**Entity Details and Registration Compliance**			
		Is your organization registered in country?	Ex. Registration documents		
	1.2	**Business Structure**			
		Is your business a LLC, Corporation, Sole-Proprietorship, etc.?			
		Who is ultimately responsible for business liabilities, debts and actions?			
	1.3	**Funding**			
		In your company's preceding fiscal year, did your company received 50% or more of its annual gross revenues from US federal contracts?			
		Hast the organization received during the previous year $300,000 or more in US Government funds?	Check audit reports		
	1.4	**Project Operations**			
		Is there an organizational chart? Is it updated?			
		Is staff aware of reporting structures?			
		Is there segregation of duties ?			
		Does the organization have an Operations Manual?			
		Are the key elements of an Operations Manual present?	1) Project definition and scope 2) Project objectives 3) Mgmt. standards & procedures 4) Organizational chart 5) Phone/mobile use policy 6) Financial & HR procedures 7) Staffing requirements 8) Archiving policy 9) Procurement procedures 10) Travel Policy 11) Critical success criteria		
	1.5	**Safety and Security Plan**			
		Is there a Safety and Security Plan on file with up-to-date emergency contact information?			
	1.6	**Human Resources and Personnel**			
		Are there Personnel Files? Do they have proper backup and filing systems?	Is there a CV or Bio-data, offer letter or employee contract? Is there a job description? Is signed copy of contract ? Test: Random check of each personnel file to verify documentation. How are salary distributions made? Are they properly documented?		
	1.7	**Finance**			
		Do financial systems effectively capture their activities?			
		Are POA project activities reported separately from other activities?			
		Is there a chart of accounts?			
		Is there evidence of proper financial documentation?	Payment ,receipt, journal entry, petty chase, invoices, payroll slips, bank statements, bank reconciliations		
		Does the organization keep a separate bank account for POA/USG funds?			
		What is the company's average monthly expenditure?			
	1.8	**Reporting**			
		Is there adequate reporting and tracking of funds?			
		Has the organization worked with cost share requirement before?			
	1.9	**Staffing/Human Resources**			
		Is there a written HR Policy? (includes the signing document of conflict of interest)			
		Is there a clear delineation of roles and responsibilities?	Ex. Responsible person for financial reporting, cash management, procurement, invoices, payroll, general accounts, property management		
		Are employees benefit plans readily available (medical, insurances, allowances, bonus policies etc.)?	Evidence (health plan, workplace insurance, overtime register, training policy, etc.)		
		Are personnel contracts available in hard copy?			
		Are consultant contracts available in hard copy?			
	1.10	**Travel**			
		Does the organization have its own travel policy?			
		Total score for Organization and Administration			0
2	**Risk Management**				
	2.1	**Anti-corruption / Sanctions Lists / Counter Terrorism**			
		Has POA conducted a screening of the organization and people working for a project? Ex. SAM Check, OFAC Check, Compliance Check			
	2.2	**Risk Management**			
		Is there a Project Filing System?	Filing list, hard and soft copy files, compliance		

Organization and Administration scoring		
High Risk	Medium Risk	Low Risk
175-260	100-174	0-99

Risk Management Scoring

			with SharePoint filing system					
						High Risk	Medium Risk	Low Risk
		Total score for Management			0	14-20	7-13	0-6
3	**Finance and Procurement**							
	3.1	**Financial Operations**						
		Are there financial management procedures?	Spot check; evidence of FM procedures and use					
		Is the staff aware of the financial management procedures?						
		Do records show correct signatures in line with delegated authority ?	Spot check 10 items					
		Are financial records being kept in hard copy?	Sight hard copies					
		Are financial records being kept in soft copy?	Check SharePoint or Local Server copies					
	3.2	**Payroll**						
		Is payroll calculated each month?	By whom and how?					
		Are all applicable taxes being withheld?	Ex. Income tax, PAYE					
		Are individual payroll sheets for each staff member available?						
		Do payroll sheets detail other benefits and percentage allocation?						
	3.3	**Audit**						
		Are annual audits being undertaken either internally or externally?	Annual audit reports					
		Has your company currently or previously been involved in any litigation concerning performance or financial management under United States Government federal award or subaward?						
	3.4	**Procurements**						
		Are formal procurement policies and procedures in place and being followed?						
						Finance and Procurement Scoring		
						High Risk	Medium Risk	Low Risk
		Total score for Finance and Procurement			0	84-120	47-83	0-46
4	**Technical Capacities**							
	4.1	**Experience**						
		Has the organization worked on projects related to POA's work in the past?						
		If so, when?						
		Did the company work under another organization/company?						
		How much money did they spend per year in the implementation of the project (s)?						
		Are the activities of the organization aligned with the mission and the values of the company?						
	4.2	**Leadership**						
		Is the company/organization well known because of its leadership in relevant topics related to POA's work?						
		Are the senior staff members of the company leaders that can facilitate project implementation?						
		During the last year has been a change in leadership?						
	4.3	**Personnel and Consultants**						
		Is the technical staff of the organization qualified and with enough experience?						
		What is the turnover of the technical staff?						
		Does the organization have a consultant database so they can hire a short-term consultant quickly?						
	4.4	**Monitoring and Evaluation**						
		Does the organization have mechanisms to ensure good quality of the products?						
		Does the staff have access to a database with where they can access and download documents related to their work?				Technical Capacities Scoring		
						High Risk	Medium Risk	Low Risk
`		***Total score for Technical Capacities***			0	91-130	51-90	0-50
		Total Score in All Categories			0			

Sub-recipient Monitoring Tool- Recurring Policy

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REOCCURING RISK ASSESSMENT

Sub-Grantee Monitoring & Evaluation Check List

Recurring Policy (Subrecipient Monitoring)

Name of Project:				
Fixed Obligation Grant/Contract:	Yes or No	**Overall Score**		
Cost Reimbursable Grant/Contract:	Yes or No	0		
Staff Name Completing Form:		High Risk	Medium Risk	Low Risk
Date Completed:		556-840	276-555	0-275

Grading Legend:

Low Risk	Medium Risk	High Risk
0-3	4 - 6	7 - 10

No.	Description		Review Areas/ Action Required	Action Required	Rating Risk
1	**Organization and Administration**				
	1.1	**Funding**			
		In your company's preceding fiscal year, did your company received 50% or more of its annual gross revenues from US federal contracts?			
		Hast the organization received during the previous year $300,000 or more in US Government funds?	Check audit reports		
	1.2	**Project Operations**			
		Is there an organizational chart? Is it updated?			
		Is staff aware of reporting structures?			
		Is there segregation of duties ?			
		Does the organization have an Operations Manual?			
		Are the key elements of an Operations Manual present?	1) Project definition and scope 2) Project objectives 3) Mgmt. standards & procedures 4) Organizational chart 5) Phone/mobile use policy 6) Financial & HR procedures 7) Staffing requirements 8) Archiving policy 9) Procurement procedures 10) Travel Policy 11) Critical success criteria		
		Is there a vehicle usage log , which is maintained, reviewed and pre-determined based on a schedule? Is there an office policy on vehicle usage?			
		Are fixed assets labeled, marked and entered into a log/register?			
		Are asset registers being updated regularly and checked at least annually?	Spot check assets and asset register/s		
		Are tags/unique identifier numbers assigned to each item?			
	1.3	**Safety and Security Plan**			
		Is there a Safety and Security Plan on file with up-to-date emergency contact information?			
	1.4	**Human Resources and Personnel**			
		Are there Personnel Files?	Is there a CV or Bio-data, offer letter or employee contract? Is there a job description? Is signed copy of contract ? Test: Random check of each personnel file to verify documentation.		
		Do they have proper backup and filing systems?	How are salary distributions made? Are they properly documented?		
	1.5	**Finance**			
		Do financial systems effectively capture their activities?			
		Are POA project activities reported separately from other activities?			
		Is there a chart of accounts?			
		Is there evidence of proper financial documentation?	Payment ,receipt, journal entry, petty chase, invoices, payroll slips, bank statements, bank reconciliations		
		Does the organization keep a separate bank account for POA/USG funds?			
		What is the company's average monthly expenditure?			
	1.6	**Reporting**			
		Is there adequate reporting and tracking of funds?			
		Is the organization reporting cost share?			
		Are the items reported as cost share reasonable and allowable?			
		Are the items reported as cost share properly documented?			
	1.7	**Project Management**			
		Are funding and staffing resource estimates sufficiently detailed and documented for use in planning and tracking the grant?	e.g.: Yearly budgets, Staffing plan		
		Are project deliverables clearly defined and understood by project staff?			
		Are target dates established for each milestone/deliverable?			
		Are project invoices being submitted to POA on time?	Spot check last 3 invoices		
		Is there a document retention policy?			
	1.8	**Staffing/Human Resources**			
		Is there a written HR Policy? (includes the signing document of conflict of interest)			
		Is there a clear delineation of roles and responsibilities?	Ex. Responsible person for financial reporting, cash management, procurement, invoices, payroll, general accounts, property management		
		Are employees benefit plans readily available (medical, insurances, allowances, bonus policies etc.)?	Evidence (health plan, workplace insurance, overtime register, training policy, etc.)		
		Is there an up-to-date list of project employees?			
		Is there an up-to-date list of project consultants?			
		Are employee salary and consultant payments in accordance with the approved budget?			
		Are personnel contracts available in hard copy?			
		Are consultant contracts available in hard copy?			
	1.9	**Travel**			
		Is there authorized travel by POA?	Check approved budget and other documentation		
		Does the organization have its own travel policy?			
		Are Travel Expense Reports (TERs) submitted correctly, on time, and with appropriate approvals?	Spot check		
		Is the correct M&IE rate being used?			
		Are itemized receipts attached to the TER?			
		Are only allowable expenses being reimbursed?			
		Are Travel Advances being cleared according to the organization's policy			
	1.10	**Conferences**			
		Is there proof that funds went to specific conferences cited in deliverables?	Check for participants list, hotel reservations, receipts, and other documentation		
		Total score for Organization and Administration			0

Organization and Administration scoring		
High Risk	Medium Risk	Low Risk
291-450	141-290	0-140

2	**Risk Management**				
	2.1	**Anti-corruption / Sanctions Lists / Counter Terrorism**			
		Has POA conducted a screening of the organization and people working for a project? Ex. SAM Check, OFAC Check, Compliance Check			
	2.2	**Integrity Systems Check**			
		Has the Code of Conduct been signed by appropriate staff members?	Ex. Random check 10 personnel files		
		Is the Code of Conduct readily available?			
	2.3	**Risk Management**			
		Are local contract templates being checked regularly (at least every two years) to make sure they are in line with country workplace laws?	Evidence of local legal advice		
		Are there soft copies of Grant Agreements and Amendments on file?			
		Are there hard copies of Grant Agreements and Amendments on file?	Check hard copies		
		Is there a Project Filing System?	Filing list, hard and soft copy files, compliance with Sharepoint filing system		
		Total score for Management			0
3	**Finance and Procurement**				
	3.1	**Financial Operations**			
		Are there financial management procedures?	Spot check; evidence of FM procedures and use		
		Is the staff aware of the financial management procedures?			
		Do records show correct signatures in line with delegated authority ?	Spot check 10 items		
		Are the expenses reasonable, allowable and allocable?	Spot check 10 items		
		Are financial records being kept in hard copy?	Sight hard copies		
		Are financial records being kept in soft copy?	Check SharePoint or Local Server copies		
		Is the project budget being updated regularly and with reasonable accuracy?	Check latest forecast, date and signature. Should be signed off each month, even if no change.		
		Is there a budget variance greater than 10% per category?			
		Are grant funds routinely requested to meet obligations?			
	3.2	**Payroll**			
		Is payroll calculated each month?	By whom and how?		
		Are all applicable taxes being withheld?	Ex. Income tax, PAYE		
		Are individual payroll sheets for each staff member available?			
		Do payroll sheets detail other benefits and percentage allocation?			
	3.3	**Audit**			
		Are annual audits being undertaken either internally or externally?	Annual audit reports		
		Are project audits stipulated per the grant?	Check contract/grant		
		If yes, are they being conducted and findings submitted to POA?			
		Has your company currently or previously been involved in any litigation concerning performance or financial management under United States Government federal award or subaward?			
	3.4	**Procurements**			
		Are formal procurement policies and procedures in place and being followed?			
		Have all special conditions of the award been met?			
		Total score for Finance and Procurement			0
4	**Technical Capacities**				
	4.1	**Experience**			
		Did the company work under another organization/company?			
		How much money did they spend per year in the implementation of the project (s)?			
		Are the activities of the organization aligned with the mission and the values of the company ?			
	4.2	**Leadership**			
		During the last year has been a change in leadership?			
	4.3	**Personnel and Consultants**			
		Is the technical staff of the organization qualified and with enough experience?			
		What is the turnover of the technical staff?			
		Does the organization have a consultant database so they can hire a short-term consultant quickly?			
		Is the project functioning as described in application?			
		Is data provided to support project "goals/outcomes"?			
	4.4	**Reporting**			
		Have technical reports been submitted timely?			
		Have the reports been accurate? Have there been errors?			
	4.5	**Monitoring and Evaluation**			
		Does the organization have mechanisms to ensure good quality of the products?			
		Does the staff have access to a database with where they can access and download documents related to their work?			
`		***Total score for Technical Capacities***			0
		Total Score in All Categories			0

Risk Management Scoring		
High Risk	Medium Risk	Low Risk
47-70	24-46	0-23

Finance and Procurement Scoring		
High Risk	Medium Risk	Low Risk
126-190	61-125	0-60

Technical Capacities Scoring		
High Risk	Medium Risk	Low Risk
91-130	51-90	0-50

Instructions

- The table at the top of the page shows how each question is score 0-10 for Risk Assessment.
  Each question will have a maximum of 10 points for high risk and 0 for low risk.

  - A score between 0-3 shows a low risk for that particular question
  - A score between 4-6 shows a Medium risk for that particular question
  - A score between 7-10 shows a high risk for that particular question

- The total sum of all the questions will determine the overall score for that section (section 1, 2, 3 or 4). The total score in each section and where that number is by analyzing the graphs/boxes (on the right) will determine the level of risk. It is important to notice that each section will have different scores (graphs/boxes on the right) depending on how many questions are being asked.

Annex K

Unallowable Costs

https://www.govinfo.gov/app/details/CFR-2014-title2-vol1/CFR-2014-title2-vol1-sec200-410/summary

Annex L

Examples for calculating per diem for HQ staff, note Field Staff have different percentages, however, the calculation is the same.

Notes:

- General Services Administration (GSA) establishes per diem rates for destinations within the lower 48 Continental United States (CONUS).
- The Department of Defense (DOD) establishes non-foreign rates which includes Alaska, Hawaii, and all U.S. Territories (Non-CONUS).
- The State Department establishes all foreign rates which are specific to major cities.
- Meal breakdown can be calculated in the following chart (note, for travel funded by USG programs, this table MUST be used): www.gsa.gov/travel/plan-book/per-diem-rates/mie-breakdown

i) Normal example with no exceptions

Traveler A, a staff from the HQ office, leaves for a trip to New York City on Monday morning in April. The flight is scheduled to leave at 9AM. The traveler returns back to home-of-record on Thursday by noon.

The M&IE rate is $76, as per the GSA website.
The Partners' approved rate is 90% = $68.4

The per diem received will be:
Monday = $68.4* 75% = $51.80
Tuesday = $68.40
Wednesday = $68.40
Thursday = $68.4 * 75% = $51.80

Total per diem = $51.80 + $68.40 + $68.40 + $5.1.80 = $240.40

ii) Departing from home early; arriving home late

Traveler B, a staff from the HQ office, leaves for a trip to Bogota, Colombia on Monday morning in April. The flight is scheduled to leave at 8:00AM. In order to catch the flight, Traveler B must leave the home-of-record at 5:30 AM in order to be at the airport two hours prior to departure. The traveler returns back to home-of-record on Thursday at 10PM.

The M&IE rate is $105, as per the State Department website.
The Partners' approved rate is 90% = $94.50

The per diem received will be:

Monday = $94.50 (this is a travel day; however, since Traveler B is leaving the home-of-record before 6AM, as per Section 14.5.2 M&IE Meal Breakdown, full per diem is applied)
Tuesday = $94.50
Wednesday = $94.50
Thursday = $94.50 (this is a travel day; however, since Traveler B is arriving to the home-of-record after 7PM, as per Section 14.5.2 M&IE Meal Breakdown, full per diem is applied)

Total per diem = $94.50 + $94.50 + $94.50 + $94.50 = $378

iii) Some meals covered by other sources

Traveler C, a staff from HQ, attends a conference in Panama City, leaving on flight on Monday at 11AM, attending the conference on Tuesday – Thursday, and returning on Friday morning, arriving to home-of-record after 9PM. During the conference, meals are provided for breakfast and lunch.

The Panama City M&IE rate is $99, as per the State Department website.
The Partners' approved rate is 90% = $89.10
Meal breakdown is as follows, as per Section 14.5.2:
Breakfast @ the $89.10 = $13; Lunch = $22; Dinner = $36; Incidentals = $18 (numbers rounded to nearest dollar)

The per diem received will be:

Monday = $89.10 * 75% = $66.83	(Panama City is the destination city and the rate to utilize on this first travel day)
Tuesday = $36 + $18 = $54	(Dinner plus incidentals)
Wednesday = $36 + $18 = $54	(Dinner plus incidentals)
Thursday = $36 + $18 = $54	(Dinner plus incidentals)

Friday = $89.10 (this is a travel day; however, since Traveler C is arriving to the home-of-record after 7PM, as per Section 14.5.2 M&IE Meal Breakdown, full per diem is applied; also, Panama City is the city of departure; hence, this rate is utilized)

Total per diem = $66.83 + 54 + 54 + 54 + 89.10 = $317.93

Annex M

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Affidavit in lieu of Receipt

I certify the following charges are true and correct and made for the business purpose outlined below.

Purpose/Event:

Date	Description	Amount	Payment Method

Signed,

______________________________ ____________
Name Date

1424 K Street NW Suite 700 Washington DC 20005 202.628.3300 www.partners.net

Acknowledgment of Receipt and Compliance to Policies

I hereby acknowledge that I have received the Guyana Supplemental Manual for Personnel and Operations (herein referred to as "MANUAL") for Partners Guyana. I understand that the purpose of the MANUAL is to acquaint employees with the policies and procedures of Partners Guyana, and to act as a reference for employees. I understand that the MANUAL reflects the policies and procedures in effect this date which may be changed by Partners Guyana.

I understand that I am bound by the provisions of this MANUAL and that it is my responsibility to read and adhered to the contents set forth in the MANUAL. Furthermore, I acknowledge these policies and procedures as conditions of employment with the Partners Guyana. I agree to comply with all policies contained within the MANUAL and to ask my supervisor any questions that I may have about it.

Print Name:____

Employee Signature:____ Date:______________

1424 K Street NW Suite 700 Washington DC 20005 202.628.3300 www.partners.net